

COMPLETE LEARNING SESSION

NHRC and SHRC - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Polity 35 - NHRC and SHRC - Complete Topic Package

Control date: 28 August 2026, Asia/Kolkata **Evidence tags:** [FACT] directly supported by a named official, judicial or audited local source; [ANALYSIS] reasoned exam use; [CURRENT] date-sensitive official position; [LIMIT] qualification, jurisdictional boundary or unresolved issue. **Answer discipline:** claim -> named evidence -> analysis -> qualification. **Scope:** statutory evolution; the statutory definition of human rights; NHRC and SHRC composition, appointment, tenure and removal; functions, inquiry powers and procedure; remedies and reporting; jurisdictional limits; armed-forces procedure; Human Rights Courts; Paris Principles and GANHRI accreditation; case law; institutional comparison; criticism, reform and current controls.

Package method, source priority and legal-current control

- [FACT] Local-first sequence followed: Polity/basic/NHRC-and-SHRC.md -> Polity/advanced/35_NHRC-and-SHRC.md -> related owners for statutory/regulatory/quasi-judicial bodies, Fundamental Rights and national commissions for SCs/STs/BCs -> related minority, women, child and disability institutions only where comparison was necessary -> all PYQ routing and audit ledgers.
- [FACT] OCR-searchable local editions of M. Laxmikanth's *Indian Polity* were checked after the Markdown owners for deeper book context.
- [FACT] Polity packages 31-34 were used only as structural, visual and validation references.
- [FACT] The controlling domestic text is the Protection of Human Rights Act, 1993 as displayed by India Code and the NHRC, with the 2006 and 2019 amendment layers.
- [CURRENT] The current official text extends the Act to the **whole of India**. It was deemed to have come into force on **28 September 1993**, received presidential assent on **8 January 1994**, and is Act No. 10 of 1994.
- [CURRENT] No later enacted amendment changing the provisions taught here was located in the current India Code, Legislative Department, MHA or NHRC texts by the control date. The one-year bar in section 36(2) remains law. Reform demands to extend or relax it are proposals.
- [CURRENT] GANHRI's March 2025 SCA report recommended downgrade of the NHRC to B status, but its 3 June 2025 note records that India challenged the recommendation with the required Bureau support. GANHRI's current membership page still lists India as [A]; the April-May 2026 SCA report did not list India among the institutions reviewed.
- [LIMIT] The package therefore records the **public current listing as A**, together with the unresolved/challenged downgrade recommendation. It does not declare a completed downgrade or invent an unpublished Bureau decision.
- [CURRENT] An official NHRC conference with SHRCs on **19 May 2026** stressed jurisdictional clarity, information sharing and integrated case-management. This is evidence of a coordination agenda, not proof that overlap or capacity gaps have ended.
- [LIMIT] Current officeholders, vacancies, complaint totals, pendency, compensation totals and disposal percentages are deliberately not frozen.

Authoritative evidence board

Named evidence	Claim controlled
India Code, Protection of Human Rights Act, 1993, current text	sections 1-40B; current composition, functions, procedure and limits
Protection of Human Rights (Amendment) Act, 2006	court-reference route, revised visits, complaint transfer, procedure and State-commission changes
Protection of Human Rights (Amendment) Act, 2019	expanded eligibility, three expert members with one woman, deemed members, tenure and UT arrangements
NHRC official composition and Act pages	current institutional statement and official consolidated Act
OHCHR, Paris Principles, GA Resolution 48/134, 19 December 1993	broad mandate, pluralism, independence, resources and methods

Named evidence	Claim controlled
GANHRI SCA 45th Session report, 13-21 March 2025, note dated 3 June 2025	downgrade recommendation, delayed effect, challenge and scrutiny grounds
GANHRI membership page and 47th SCA report, April-May 2026	public A listing and absence of a published 47th-session India decision
<i>N.C. Dhoundial v. Union of India</i> , Supreme Court, 4 December 2003	section 36(2) as a jurisdictional bar; no generic continuing-wrong escape
<i>Paramjit Kaur v. State of Punjab</i> (1999), as authoritatively explained in <i>Dhoundial</i>	NHRC as Supreme Court's expert body under Article 32
<i>EEVFAM v. Union of India</i> , Supreme Court, 8 July 2016	Article 32 oversight, excessive-force inquiry and qualified NHRC role
Audited local PYQ ledgers and local official paper exports	exact 2018 GS-II Q16 and 2021 GS-II Q12 routes

Official links used for control

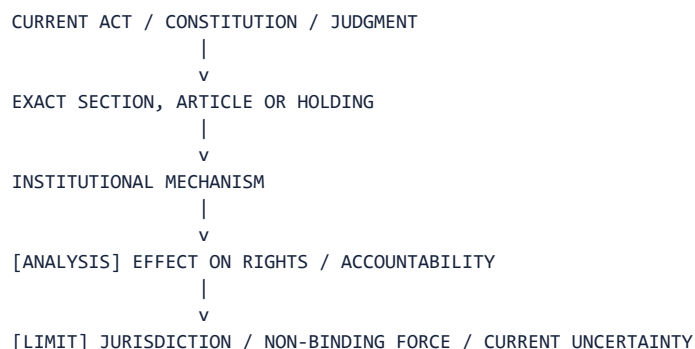
- India Code Act text: <https://www.indiacode.nic.in/bitstream/123456789/15709/1/a199410.pdf>
- India Code Act page: <https://www.indiacode.nic.in/handle/123456789/15709>
- NHRC Act page: <https://nhrc.nic.in/acts-and-rules/protection-human-rights-act-1993>
- NHRC composition: https://nhrc.nic.in/about-us/composition_of_commission
- OHCHR Paris Principles: <https://www.ohchr.org/en/instruments-mechanisms/instruments/principles-relating-status-national-institutions-paris>
- GANHRI SCA reports archive: <https://ganhri.org/accreditation/sca-reports/>
- GANHRI March 2025 SCA report: https://ganhri.org/wp-content/uploads/2025/06/SCA-Report-march-2025-session_13052025_EN.pdf
- GANHRI 47th Session report: <https://ganhri.org/wp-content/uploads/2026/06/sca-report-47th-session-en.pdf>
- GANHRI membership listing: <https://ganhri.org/membership/>
- Supreme Court, *N.C. Dhoundial*: <https://api.sci.gov.in/jonew/judis/25688.pdf>
- Supreme Court, *EEVFAM* (8 July 2016): <https://api.sci.gov.in/jonew/judis/43775.pdf>
- NHRC-SHRC conference, 19 May 2026: <https://nhrc.nic.in/media/press-release/nhrc,-india-holds-a-day-long-conference-of-shrcs-along-with-its-special-rapporteurs-and-special-monitors-in-virtual-mode-in-new-delhi>

Roadmap

Stage	Units	Exam outcome
Foundation	legal status, evolution, statutory definition	classify the bodies and define the protected field precisely
Design	NHRC and SHRC composition, appointment, tenure and removal	solve close institutional options
Mandate	functions, court intervention, visits, treaties, literacy and NGOs	separate promotion from adjudication
Procedure	civil-court powers, investigation, hearing, inquiry and outputs	explain how a complaint moves
Boundaries	overlap, one-year bar, federal lists, private actors and armed forces	identify exact statutory ceilings
Enforcement	recommendations, reports, courts and Human Rights Courts	distinguish evidence power from remedy power
International	Paris Principles and GANHRI review	evaluate independence without misreporting status
Case law	<i>Paramjit Kaur</i> , <i>Dhoundial</i> and <i>EEVFAM</i>	use holdings with qualifications

Stage	Units	Exam outcome
Comparison	commissions, courts, Lokpal and specialised bodies	prevent source/jurisdiction/binding-force confusion
Workbook	verified PYQs, 48 rotated MCQs and eight solved Mains	convert doctrine into marks

Visual 1 - Source-to-answer ladder



Caption: A strong Polity answer starts with named authority, explains mechanism and ends with a precise qualification.

BASIC LEARNING SESSION



Refreshed teaching navigation

Distinct embedded teaching-navigation image. The separate continuous Cārvāka-style flowchart package remains an independent at-a-glance artifact.

SESSION 1 - IDENTITY, LEGAL SOURCE AND STATUTORY EVOLUTION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The National Human Rights Commission (NHRC) and State Human Rights Commissions (SHRCs) are statutory bodies created under the Protection of Human Rights Act, 1993.

Technical definition: “Statutory” does not mean “court,” “binding tribunal” or “executive department.” The Act gives inquiry powers and recommendatory outputs, not a general power to convict, punish or execute decrees.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The National Human Rights Commission (NHRC) and State Human Rights Commissions (SHRCs) are statutory bodies created under the Protection of Human Rights Act, 1993.

MUST-WRITE KEYWORDS

- Identity
- Legal Source
- Statutory Evolution
- National Human Rights Commission (NHRC)
- Protection of Human Rights Act, 1993
- shall constitute

How to use them: Frame the answer through Identity; define Legal Source, connect Statutory Evolution with National Human Rights Commission (NHRC) to explain the mechanism, and use Protection of Human Rights Act, 1993 for the decisive comparison or qualification.

[FACT] The **National Human Rights Commission (NHRC)** and **State Human Rights Commissions (SHRCs)** are statutory bodies created under the **Protection of Human Rights Act, 1993**. They are not constitutional bodies.

[FACT] Section 3 says the Central Government **shall constitute** the NHRC. Section 21 says a State Government **may constitute** an SHRC. The national body is mandatory under the Act; the State body is enabled, not automatically created in every State.

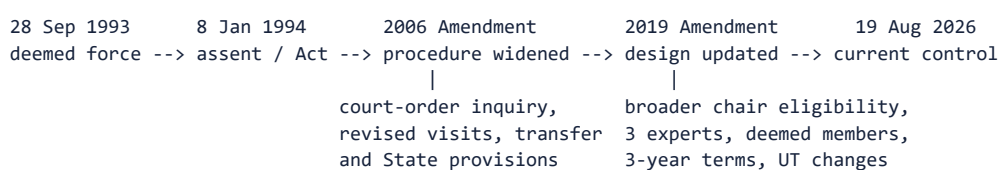
[ANALYSIS] Statutory status gives the commissions a defined mandate, procedure and safeguards while allowing Parliament to alter their design by ordinary legislation, subject to constitutional review.

[LIMIT] “Statutory” does not mean “court,” “binding tribunal” or “executive department.” The Act gives inquiry powers and recommendatory outputs, not a general power to convict, punish or execute decrees.

Visual 2 - Legal-status classification

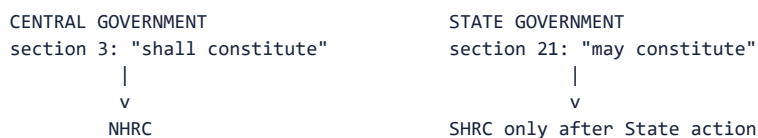
Institution	Creating source	Correct label	Core output
NHRC	PHRA, 1993, section 3	statutory national commission	inquiry report and recommendations
SHRC	PHRA, 1993, section 21 + State notification constituting it	statutory State commission	inquiry report and recommendations
NCSC	Article 338	constitutional commission	investigation, advice and reports
NCST	Article 338A	constitutional commission	investigation, advice and reports
NCBC	Article 338B	constitutional commission	investigation, consultation and reports
Supreme Court/High Court	Constitution	constitutional courts	binding judgments, writs and orders

Visual 3 - Evolution timeline



Caption: The controlling architecture is the 1993 Act as altered principally in 2006 and 2019.

Visual 4 - Mandatory versus enabling constitution



Visual 5 - Status is not sanction

What statutory status gives	What it does not automatically give
legal mandate	constitutional entrenchment
specified composition	complete operational independence
inquiry procedure	power to convict
civil-court powers for listed matters	status as a civil court for all purposes
reporting route	automatic compliance with recommendations

CLOSING RECALL FLOW - IDENTITY, LEGAL SOURCE AND STATUTORY EVOLUTION

START / CONCEPT: IDENTITY, LEGAL SOURCE AND STATUTORY EVOLUTION

|
v

EXACT TERMS: Identity · Legal Source · Statutory Evolution · National Human Rights Commission (NHRC) · Protection of Human Rights Act, 1993 · shall constitute

|
v

MECHANISM / ARGUMENT: “Statutory” does not mean “court,” “binding tribunal” or “executive department.” The Act gives inquiry powers and recommendatory outputs, not a general power to convict, punish or execute decrees.

|
v

CONSEQUENCE / CONTRAST: The national body is mandatory under the Act; the State body is enabled, not automatically created in every State.

|
v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: “Statutory” does not mean “court,” “binding tribunal” or “executive department.” The Act gives inquiry...

|
v

ANSWER-GRABBING FORMULATION: The National Human Rights Commission (NHRC) and State Human Rights Commissions (SHRCs) are statutory bodies created under the Protection of Human Rights Act, 1993.

SESSION 2 - WHAT “HUMAN RIGHTS” MEANS UNDER THE ACT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Section 2(1)(d) defines human rights as “the rights relating to life, liberty, equality and dignity of the individual guaranteed by the Constitution or embodied in the International Covenants and enforceable by courts in India.”

Technical definition: Technically, What “Human Rights” Means Under The Act is analysed by relating ICCPR to yes, then testing the relationship through expressly named and ICESCR.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Do not write that all international human-rights declarations, treaties or soft-law documents are directly enforceable in India merely because they concern human rights.

MUST-WRITE KEYWORDS

- ICCPR
- yes
- expressly named
- ICESCR
- another UNGA covenant/convention
- only if Central Government notification specifies it

How to use them: Frame the answer through ICCPR; define yes, connect expressly named with ICESCR to explain the mechanism, and use another UNGA covenant/convention for the decisive comparison or qualification.

[FACT] Section 2(1)(d) defines human rights as “**the rights relating to life, liberty, equality and dignity of the individual guaranteed by the Constitution or embodied in the International Covenants and enforceable by courts in India.**”

[FACT] Section 2(1)(f) defines “International Covenants” as:

1. the **International Covenant on Civil and Political Rights (ICCPR)**;
2. the **International Covenant on Economic, Social and Cultural Rights (ICESCR)**, both adopted by the UN General Assembly on 16 December 1966; and
3. any other UN General Assembly covenant or convention that the Central Government specifies by notification.

[ANALYSIS] The definition joins four substantive values-life, liberty, equality and dignity-to a domestic enforceability filter. It links constitutional rights with specified covenant rights without automatically incorporating every international instrument.

[LIMIT] Do not write that all international human-rights declarations, treaties or soft-law documents are directly enforceable in India merely because they concern human rights. The Act's definition is narrower.

Visual 6 - Statutory definition formula

```

LIFE + LIBERTY + EQUALITY + DIGNITY
    |
    guaranteed by Constitution
    OR
    embodied in "International Covenants"
    |
    enforceable by courts in India
    =
    HUMAN RIGHTS UNDER SECTION 2(d)
  
```

Visual 7 - International-covenant gate

Instrument	Automatically within section 2(f)?	Reason
ICCPR	yes	expressly named
ICESCR	yes	expressly named
another UNGA covenant/convention	only if Central Government notification specifies it	statutory notification gate
Paris Principles	no, not as an "International Covenant" under this definition	institutional standard, not the section 2(f) category
NGO declaration or commentary	no	not a notified covenant/convention

Visual 8 - Rights-to-remedy chain

```

CONSTITUTION / SPECIFIED COVENANT RIGHT
    |
    enforceable in India
    |
    alleged violation linked
    to a public servant
    |
    NHRC/SHRC inquiry route
    |
    recommendation / court approach
  
```

[LIMIT] The Commission route supplements, but does not replace, Articles 32 and 226, criminal procedure, civil remedies, service remedies or specialised statutory forums.

CLOSING RECALL FLOW - WHAT "HUMAN RIGHTS" MEANS UNDER THE ACT

```

START / CONCEPT: WHAT "HUMAN RIGHTS" MEANS UNDER THE ACT
    |
    v
    EXACT TERMS: ICCPR • yes • expressly named • ICESCR • another UNGA covenant/convention • only if
    Central Government notification specifies it
    |
    v
    MECHANISM / ARGUMENT: Section 2(1)(d) defines human rights as "the rights relating to life, liberty,
    equality and dignity of the individual guaranteed by the Constitution or embodied in the
    International Covenants and enforceable by courts in India.".
    |
    v
    CONSEQUENCE / CONTRAST: The Commission route supplements, but does not replace, Articles 32 and 226,
    criminal procedure, civil remedies, service remedies or specialised statutory forums.
    |
    v
    UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: it links constitutional rights with
    specified covenant rights without automatically incorporating every international instrument.
    |
    v
    ANSWER-GRABBING FORMULATION: Do not write that all international human-rights declarations,
    treaties or soft-law documents are directly enforceable in India merely because they concern human
    rights.
  
```

SESSION 3 - NHRC COMPOSITION AFTER THE 2019 AMENDMENT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The post-2019 NHRC has a Chairperson, five ordinary members and a separate deemed-member coordination layer.

Technical definition: NHRC composition after the 2019 Amendment separates section 3(2) ordinary membership from section 3(3) deemed membership for limited functions.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The amended NHRC composition combines judicial experience, human-rights expertise and specialist coordination.

MUST-WRITE KEYWORDS

- **NHRC composition**
- **2019 Amendment**
- **Chairperson**
- **ordinary members**
- **deemed members**
- **section 3(2)**
- **section 3(3)**
- **one woman**

How to use them: Frame the answer through NHRC composition; define 2019 Amendment, connect Chairperson with ordinary members to explain the mechanism, and use deemed members for the decisive comparison or qualification.

[FACT] Section 3(2) creates a standing composition of a Chairperson and five members:

1. **Chairperson:** a person who has been a Chief Justice of India **or a Judge of the Supreme Court**;
2. one member who is or has been a Judge of the Supreme Court;
3. one member who is or has been the Chief Justice of a High Court; and
4. three members with knowledge of or practical experience in human-rights matters, **at least one of whom shall be a woman.**

[FACT] Section 3(3) makes seven officeholders deemed members:

- Chairperson, National Commission for Backward Classes;
- Chairperson, National Commission for Minorities;
- Chairperson, National Commission for Protection of Child Rights;
- Chairperson, National Commission for Scheduled Castes;
- Chairperson, National Commission for Scheduled Tribes;
- Chairperson, National Commission for Women; and
- Chief Commissioner for Persons with Disabilities.

[FACT] These seven are deemed members only for functions in **section 12(b) to (j)**. They are not deemed members for the complaint-inquiry function in section 12(a).

[ANALYSIS] The design combines adjudicative experience, general human-rights expertise and links to specialised institutions. The deemed-member layer is an integration device without dissolving the specialised bodies.

[LIMIT] "At least one woman" applies to the three human-rights experts; it does not establish gender parity across the whole Commission.

Visual 9 - NHRC standing composition

```
CHAIRPERSON
former CJI or former Supreme Court judge
|
+-- Judicial member: serving/former SC judge
|
+-- Judicial member: serving/former HC Chief Justice
|
+-- Expert 1
+-- Expert 2
+-- Expert 3
|
at least one woman
```

Visual 10 - Standing and deemed members

Layer	Number	Participation
Chairperson + ordinary members under section 3(2)	6 persons in all	Commission's statutory work
Deemed members under section 3(3)	7 officeholders	section 12(b)-(j), not section 12(a) complaint inquiry

Visual 11 - Deemed-member integration map

```
NCBC  NCM  NCPCR  NCSC  NCST  NCW  Chief Commissioner PwD
 \    |    |    |    |    |    /
  \   |    |    |    |    /
   DEEMED NHRC MEMBERS
   |
section 12(b) to (j)
intervention / visits / review / research /
literacy / NGO encouragement / promotion
X
not section 12(a) complaint inquiry
```

Visual 12 - Pre-2019 versus post-2019 control

Dimension	Earlier structure	Current post-2019 structure
Chair eligibility	former CJI	former CJI or former SC judge
human-rights experts	two	three
woman requirement	no express minimum in this clause	at least one among the three experts
deemed links	narrower	includes NCBC, NCPCR and Chief Commissioner PwD in addition to earlier bodies
ordinary term	five years	three years

CLOSING RECALL FLOW - NHRC COMPOSITION AFTER THE 2019 AMENDMENT

```
START / CONCEPT: NHRC COMPOSITION AFTER THE 2019 AMENDMENT
|
v
EXACT TERMS: NHRC composition • 2019 Amendment • Chairperson • ordinary members • deemed members •
section 3(2) • section 3(3) • one woman
|
v
MECHANISM / ARGUMENT: Section 3(2) constitutes the standing Commission, while section 3(3) adds
seven deemed members for section 12(b)-(j).
|
v
CONSEQUENCE / CONTRAST: This design broadens expertise without merging specialist bodies or
extending deemed participation to complaint inquiry.
|
v
UPSC TRAP / ANSWER-USE: Do not call deemed members ordinary members or include them in section 12(
a) complaint inquiry.
|
v
ANSWER-GRABBING FORMULATION: The amended NHRC composition combines judicial experience, human-
```

SESSION 4 - NHRC APPOINTMENT, TENURE, RESIGNATION AND REMOVAL

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Section 4(2) says an appointment is not invalid merely because of a vacancy of a member in the selection committee.

Technical definition: Resignation is addressed to the President.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Do not collapse all removal grounds into "Supreme Court inquiry required." The inquiry route is for proved misbehaviour/incapacity; section 5(3) separately lists direct grounds.

MUST-WRITE KEYWORDS

- **Nhrc Appointment**
- **Tenure**
- **Resignation**
- **Removal**
- **proved misbehaviour or incapacity**
- **Prime Minister**

How to use them: Frame the answer through Nhrc Appointment; define Tenure, connect Resignation with Removal to explain the mechanism, and use proved misbehaviour or incapacity for the decisive comparison or qualification.

[FACT] The President appoints the Chairperson and members by warrant under his hand and seal after recommendation of a six-member committee:

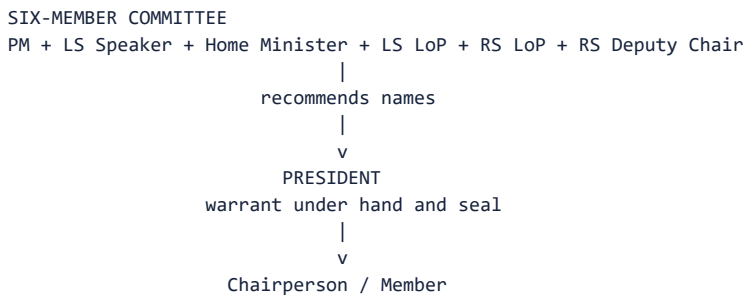
1. Prime Minister-Chairperson;
2. Speaker of the Lok Sabha;
3. Union Home Minister;
4. Leader of the Opposition in the Lok Sabha;
5. Leader of the Opposition in the Rajya Sabha; and
6. Deputy Chairman of the Rajya Sabha.

[FACT] A sitting Supreme Court judge or sitting High Court Chief Justice cannot be appointed without consultation with the Chief Justice of India.

[FACT] Section 4(2) says an appointment is not invalid merely because of a vacancy of a member in the selection committee. The Act itself uses the offices "Leader of the Opposition"; it does not replace them in the text with a generic "leader of the largest opposition party."

[LIMIT] A vacancy-saving clause prevents automatic invalidity; it does not eliminate constitutional judicial review for illegality, mala fides or failure to follow the Act.

Visual 13 - NHRC appointment chain



Visual 14 - Selection-committee trap grid

Included	Not included by section 4
Prime Minister	Chief Justice of India as committee member
Lok Sabha Speaker	President as committee member
Union Home Minister	Vice-President in that capacity
LoP of each House	Cabinet Secretary
Rajya Sabha Deputy Chairman	Attorney-General

[FACT] The Chairperson holds office for three years from entry or until age seventy, whichever is earlier, and is eligible for reappointment.

[FACT] A member holds office for three years and is eligible for reappointment, but cannot continue after age seventy. The 2019 Amendment removed the former “another term of five years” wording; the Act does not state a fixed maximum number of reappointments.

[FACT] On leaving office, the Chairperson or a member is ineligible for further employment under the Union or a State government.

Visual 15 - Tenure clock

CHAIRPERSON: entry + 3 years OR age 70, whichever earlier -> reappointment eligible
MEMBER: entry + 3 years -> reappointment eligible -> absolute age ceiling 70
AFTER OFFICE: no further Union/State government employment

[FACT] Resignation is addressed to the President.

[FACT] For **proved misbehaviour or incapacity**, the President refers the matter to the Supreme Court; removal follows if the Court, after the prescribed inquiry, reports that the person ought to be removed.

[FACT] The President may remove directly on the separate statutory grounds of:

- adjudged insolvency;
- paid outside employment during the term;
- unfitness due to infirmity of mind or body;
- unsound mind declared by a competent court; or
- conviction and imprisonment for an offence that, in the President's opinion, involves moral turpitude.

Visual 16 - Two removal tracks

TRACK A: PROVED MISBEHAVIOUR / INCAPACITY

President reference -> Supreme Court inquiry -> Court report -> President removal

TRACK B: DIRECT STATUTORY GROUNDS

insolvency / paid outside work / infirmity / declared unsound mind /
conviction + imprisonment involving moral turpitude

|
v
President order

[LIMIT] Do not collapse all removal grounds into “Supreme Court inquiry required.” The inquiry route is for proved misbehaviour/incapacity; section 5(3) separately lists direct grounds.

CLOSING RECALL FLOW - NHRC APPOINTMENT, TENURE, RESIGNATION AND REMOVAL

START / CONCEPT: NHRC APPOINTMENT, TENURE, RESIGNATION AND REMOVAL

|
v

EXACT TERMS: Nhrc Appointment · Tenure · Resignation · Removal · proved misbehaviour or incapacity
· Prime Minister

|
v

MECHANISM / ARGUMENT: Section 4(2) says an appointment is not invalid merely because of a vacancy of a member in the selection committee.

|
v

CONSEQUENCE / CONTRAST: The Act itself uses the offices “Leader of the Opposition”; it does not replace them in the text with a generic “leader of the largest opposition party.”.

|
v

UPSC TRAP / ANSWER-USE: A vacancy-saving clause prevents automatic invalidity; it does not eliminate constitutional judicial review for illegality, mala fides or failure to follow the Act.

|
v

ANSWER-GRABBING FORMULATION: Do not collapse all removal grounds into “Supreme Court inquiry required.” The inquiry route is for proved misbehaviour/incapacity; section 5(3) separately lists direct grounds.

SESSION 5 - SHRC DESIGN: COMPOSITION, APPOINTMENT, TENURE AND REMOVAL

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: An SHRC Chairperson or member resigns to the Governor, but removal is by the President.

Technical definition: The SHRC Chairperson serves three years or to age seventy, whichever is earlier, and is eligible for reappointment.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

An SHRC Chairperson or member resigns to the Governor, but removal is by the President.

MUST-WRITE KEYWORDS

- Shrc Design
- Composition
- Appointment
- Tenure
- Removal
- or a Judge

How to use them: Frame the answer through Shrc Design; define Composition, connect Appointment with Tenure to explain the mechanism, and use Removal for the decisive comparison or qualification.

[FACT] Section 21 permits a State Government to constitute an SHRC. Its current standing composition is:

1. Chairperson who has been a Chief Justice **or a Judge** of a High Court;
2. one member who is or has been a High Court judge, or a District Judge in the State with at least seven years' experience as District Judge; and
3. one member with knowledge of or practical experience in human-rights matters.

[FACT] An SHRC has no statutory seven-member deemed/ex-officio layer corresponding to section 3(3).

Visual 17 - SHRC standing composition

CHAIRPERSON

```

former HC Chief Justice or former HC judge
|
+-- Judicial member:
|   serving/former HC judge
|   OR District Judge with >=7 years as District Judge
|
+-- Human-rights expert
  
```

[FACT] The Governor appoints the Chairperson and members by warrant after recommendation of a committee consisting of:

- Chief Minister-Chairperson;
- Speaker of the Legislative Assembly;
- State Home Minister; and
- Leader of the Opposition in the Legislative Assembly.

[FACT] In a bicameral State, the Chairman of the Legislative Council and the Leader of the Opposition in that Council also join the committee.

[FACT] A sitting High Court judge or sitting District Judge cannot be appointed without consultation with the Chief Justice of the concerned High Court.

Visual 18 - SHRC appointment chain

UNICAMERAL STATE: CM + Assembly Speaker + State Home Minister + Assembly LoP

BICAMERAL ADD-ON: Council Chairman + Council LoP

```

      |
      | recommends names
      |
      v
    GOVERNOR
warrant under hand and seal
  
```

[FACT] An SHRC Chairperson or member resigns to the **Governor**, but removal is by the **President**.

[FACT] Proved misbehaviour/incapacity requires the same President-to-Supreme-Court inquiry route. The President also exercises the direct removal grounds corresponding to insolvency, outside paid work, infirmity, declared unsoundness and qualifying conviction.

[ANALYSIS] The appointment/removal asymmetry gives the State a constitutive role while insulating removal from unilateral action by the State executive being scrutinised.

Visual 19 - SHRC asymmetry

Stage	Authority
appoints	Governor
receives resignation	Governor
removes after SC inquiry or on direct statutory ground	President
appoints acting Chairperson during vacancy/absence	Governor

[FACT] The SHRC Chairperson serves three years or to age seventy, whichever is earlier, and is eligible for reappointment. A member serves three years, is reappointment-eligible and cannot continue after seventy.

[FACT] Two or more State Governments may, with consent and after the required committee recommendations, appoint a common Chairperson or member.

[FACT] The Central Government may confer Union-territory human-rights functions on an SHRC, except that the NHRC handles the functions relating to the Union Territory of Delhi.

Visual 20 - NHRC-SHRC design comparison

Dimension	NHRC	SHRC
creating command	Centre shall constitute	State may constitute
appointment	President	Governor
removal	President	President
chair eligibility	former CJI or SC judge	former HC Chief Justice or HC judge
ordinary judicial members	SC judge + HC Chief Justice	HC judge/District Judge route
expert members	three, at least one woman	one
deemed members	seven for section 12(b)-(j)	none under the Act
headquarters	Delhi; other offices with prior Central approval	place notified by State

CLOSING RECALL FLOW - SHRC DESIGN: COMPOSITION, APPOINTMENT, TENURE AND REMOVAL

START / CONCEPT: SHRC DESIGN: COMPOSITION, APPOINTMENT, TENURE AND REMOVAL

|

v

EXACT TERMS: Shrc Design · Composition · Appointment · Tenure · Removal · or a Judge

|

v

MECHANISM / ARGUMENT: The SHRC Chairperson serves three years or to age seventy, whichever is earlier, and is eligible for reappointment.

|

v

CONSEQUENCE / CONTRAST: An SHRC has no statutory seven-member deemed/ex-officio layer corresponding to section 3(3).

|

v

UPSC TRAP / ANSWER-USE: A member serves three years, is reappointment-eligible and cannot continue after seventy.

|

v

ANSWER-GRABBING FORMULATION: An SHRC Chairperson or member resigns to the Governor, but removal is by the President.

SESSION 6 - FUNCTIONS: WHAT THE COMMISSIONS ARE AUTHORISED TO DO

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Section 12 authorises inquiry, court intervention, institutional visits, safeguard review, research, literacy and promotional work.

Technical definition: NHRC performs section 12(a)-(j), while section 29 adapts those functions for SHRCs and omits treaty study under section 12(f).

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The commissions combine protective inquiry with preventive, educational and advisory functions.

MUST-WRITE KEYWORDS

- **section 12**
- **inquiry**
- **court intervention**
- **institution visits**
- **safeguard review**
- **treaty study**
- **research**
- **human-rights literacy**

How to use them: Frame the answer through section 12; define inquiry, connect court intervention with institution visits to explain the mechanism, and use safeguard review for the decisive comparison or qualification.

[FACT] Section 12(a) authorises inquiry, suo motu, on a victim's petition, on a petition by another person on the victim's behalf, or on a direction/order of a court, into:

- violation of human rights or abetment; or
- negligence by a public servant in preventing such violation.

[FACT] Section 12(b) permits intervention in a pending court proceeding involving an allegation of human-rights violation **with the approval of that court**.

[FACT] Current section 12(c), substituted in 2006, permits visits-despite other law-to a jail or other State-controlled institution where persons are detained or lodged for treatment, reformation or protection, to study living conditions and recommend changes.

[LIMIT] The current consolidated clause does not reproduce the older shorthand "after/under intimation to the State Government." Use the present statutory text in an answer.

Visual 21 - Section 12 function wheel

Clause	Function	Exact limit
(a)	inquire into violation/abetment or public-servant negligence	complaint jurisdiction, subject to sections 19, 21 and 36
(b)	intervene in court proceeding	court approval required
(c)	visit jail/institution and study conditions	State-controlled institution described by clause
(d)	review constitutional/legal safeguards	recommend implementation measures
(e)	review inhibiting factors including terrorism	recommend remedies
(f)	study treaties and other international instruments	SHRC does not receive this clause through section 29
(g)	research	promotional, not adjudicative
(h)	human-rights literacy	publications, media, seminars and other means
(i)	encourage NGOs/institutions	cooperation function
(j)	other promotion functions	must remain tied to human-rights promotion

Visual 22 - Complaint entry routes



Visual 23 - Court-intervention boundary

pending court proceeding
 +
 human-rights allegation
 +
 approval of that court
 =
 NHRC/SHRC may intervene

[FACT] Sections 12(d)-(j) cover review of safeguards; factors inhibiting rights, including terrorism; treaty/instrument study; research; literacy; NGO encouragement; and other promotion functions.

[FACT] Section 29 applies section 12 to SHRCs but **omits clause (f)**. Thus treaty and international-instrument study is an NHRC function under this statutory application scheme, not an SHRC function imported through section 29.

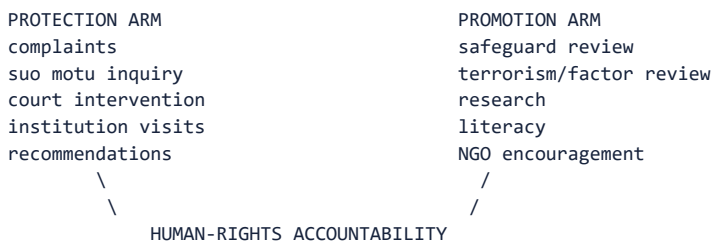
Visual 24 - NHRC versus SHRC function delta

Function	NHRC	SHRC
complaint inquiry	yes	yes, within State/Concurrent field
court intervention with approval	yes	yes
jail/institution visit	yes	yes
safeguard/factor review	yes	yes
treaty/instrument study under section 12(f)	yes	omitted by section 29
research/literacy/NGO encouragement	yes	yes

[ANALYSIS] The Act gives the commissions a dual identity: **protection** through complaints and inquiries, and **promotion** through research, review, education and cooperation.

[LIMIT] They are not substitutes for police investigation under the criminal process, prosecution by the State, trial by a criminal court or constitutional adjudication by the Supreme Court/High Courts.

Visual 25 - Protection and promotion



CLOSING RECALL FLOW - FUNCTIONS: WHAT THE COMMISSIONS ARE AUTHORISED TO DO

START / CONCEPT: FUNCTIONS: WHAT THE COMMISSIONS ARE AUTHORISED TO DO

↓

EXACT TERMS: section 12 • inquiry • court intervention • institution visits • safeguard review • treaty study • research • human-rights literacy

↓

MECHANISM / ARGUMENT: A complaint may trigger inquiry, while visits, reviews, research and literacy address systemic prevention.

↓

CONSEQUENCE / CONTRAST: NHRC has the treaty-study function; SHRCs receive the adapted statutory set within their jurisdiction.

↓

UPSC TRAP / ANSWER-USE: Do not reduce section 12 to complaint disposal or import omitted clause 12(f) into SHRC powers.

↓

ANSWER-GRABBING FORMULATION: The commissions combine protective inquiry with preventive, educational and advisory functions.

SESSION 7 - INQUIRY POWERS, INVESTIGATION AND PROCEDURAL FAIRNESS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Civil-court powers help the commissions collect and test evidence during an inquiry.

Technical definition: Section 13 grants listed evidence powers; sections 11 and 14 provide government-supplied staff and consensual agency support; section 16 protects affected persons through notice and hearing.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Strong evidence-gathering powers coexist with dependence on government-linked investigation support.

MUST-WRITE KEYWORDS

- section 13
- civil-court powers
- section 14
- investigation agency
- section 16
- notice
- hearing
- procedural fairness

How to use them: Frame the answer through section 13; define civil-court powers, connect section 14 with investigation agency to explain the mechanism, and use section 16 for the decisive comparison or qualification.

[FACT] Under section 13(1), while inquiring into complaints, the Commission has civil-court powers for:

- summoning and enforcing witness attendance and examination on oath;
- discovery and production of documents;
- receiving affidavit evidence;
- requisitioning public records or copies from a court or office;
- issuing commissions for examination of witnesses/documents; and
- prescribed matters.

[FACT] It may require relevant information, subject to lawful privilege. An authorised gazetted officer may enter a building/place where relevant documents are believed to exist and seize, copy or extract them subject to the applicable criminal-procedure safeguard.

[FACT] For specified offences in its view/presence, the Commission is deemed a civil court for forwarding the matter to a Magistrate. Proceedings are deemed judicial proceedings for specified Penal Code and criminal-procedure purposes.

[LIMIT] These deeming provisions are purpose-specific. “Civil-court powers” does not convert every Commission recommendation into a decree.

Visual 26 - Civil-court power kit

SUMMON -> EXAMINE ON OATH -> REQUIRE DOCUMENTS -> RECEIVE AFFIDAVITS
-> REQUISITION RECORDS -> ISSUE COMMISSIONS -> BUILD EVIDENCE RECORD

Visual 27 - Power-status distinction

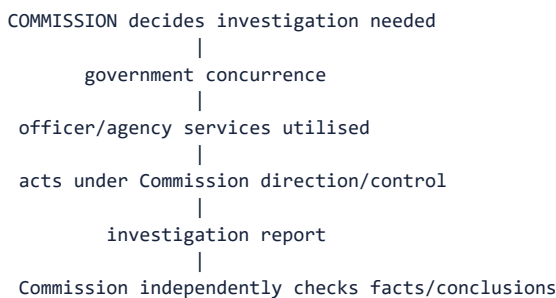
Proposition	Correct?	Why
Commission may summon a witness	yes	section 13
Commission is a civil court for every legal purpose	no	deeming is limited
Commission proceeding has specified judicial-proceeding status	yes	section 13(5)
Commission can itself convict the violator	no	criminal court retains trial power
Commission recommendation is executable like a decree	no	section 18 uses recommendatory language

[FACT] Under section 14, the Commission may use an officer or investigation agency of the Union or a State, with the concerned government's concurrence. The officer/agency acts under the Commission's direction and control and submits a report.

[FACT] The Commission must satisfy itself about the correctness of facts and conclusions in that report and may examine the investigating persons.

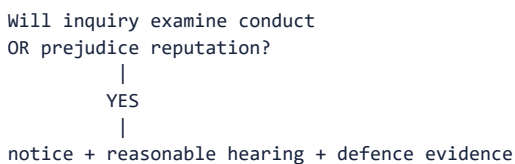
[ANALYSIS] Statutory direction and review preserve formal Commission control, but dependence on government-provided police/investigative personnel creates a perceived or real independence concern when police conduct itself is under scrutiny.

Visual 28 - Investigation chain



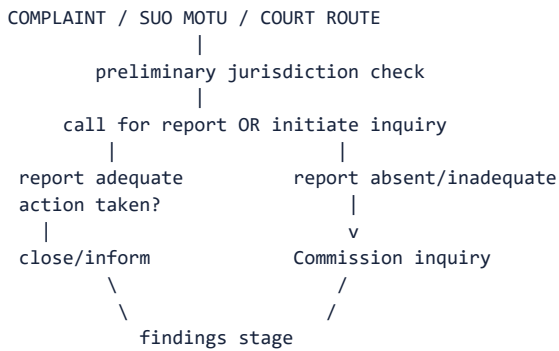
[FACT] Section 16 requires a reasonable opportunity of hearing and defence where the Commission examines a person's conduct or may prejudicially affect that person's reputation.

Visual 29 - Procedural-fairness gate

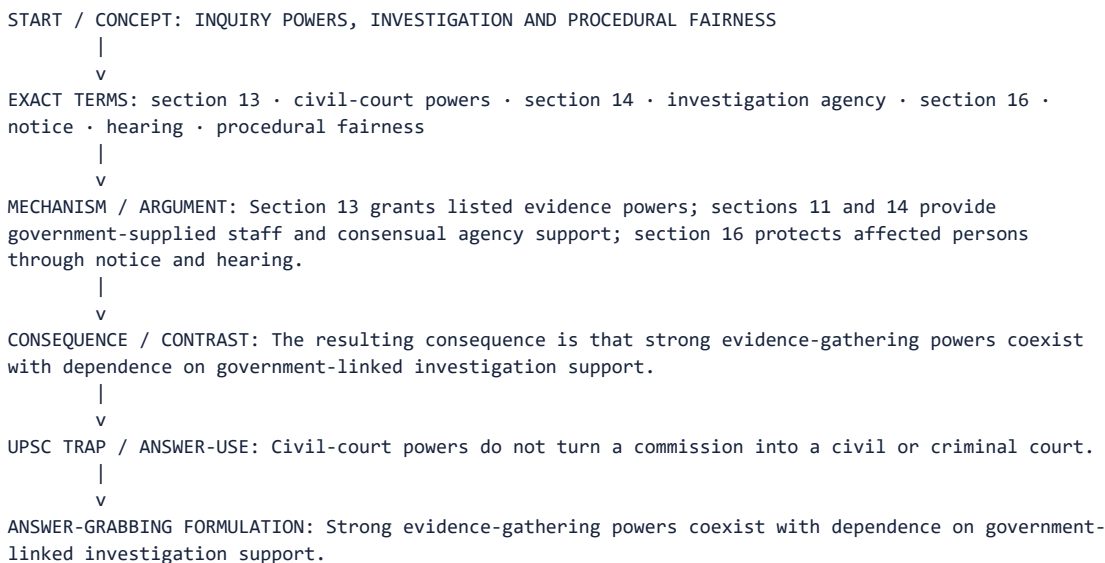


[FACT] Under section 17, the Commission may call for information/report from government or a subordinate authority/organisation within a specified time. If no report arrives, it may inquire itself. If satisfactory action has already been initiated/taken, it may stop and inform the complainant. It may directly initiate inquiry where necessary.

Visual 30 - Complaint-processing flow



CLOSING RECALL FLOW - INQUIRY POWERS, INVESTIGATION AND PROCEDURAL FAIRNESS



SESSION 8 - WHAT THE COMMISSION MAY DO AFTER INQUIRY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: After inquiry, the commission recommends relief or action and can seek constitutional-court intervention.

Technical definition: Section 18 permits recommendations for compensation, prosecution, other action or interim relief, followed by government comments and publication.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The follow-up chain creates publicity and accountability without making the recommendation a self-executing decree.

MUST-WRITE KEYWORDS

- NHRC
- SHRC
- Protection of Human Rights Act
- jurisdiction
- independence
- recommendation

How to use them: Frame the answer through NHRC; define SHRC, connect Protection of Human Rights Act with jurisdiction to explain the mechanism, and use independence for the decisive comparison or qualification.

[FACT] Section 18 permits the Commission to:

1. recommend compensation or damages;

2. recommend prosecution or other suitable action;
3. recommend further action;
4. approach the Supreme Court or concerned High Court for directions, orders or writs;
5. recommend immediate interim relief at any inquiry stage;
6. provide the inquiry report to the petitioner/representative, subject to the statutory sequence;
7. send the report and recommendations to the concerned government/authority; and
8. publish the report with government comments and action taken/proposed.

[FACT] The concerned government/authority must, within **one month** or further time allowed by the Commission, send comments including action taken or proposed.

[LIMIT] The legal duty is to respond with comments/action taken or proposed. Section 18 does not say every recommendation automatically binds the government.

Visual 31 - Section 18 remedy menu

```
FINDING OF VIOLATION / ABETMENT / PUBLIC-SERVANT NEGLIGENCE
|
+-- recommend compensation/damages
+-- recommend prosecution/other action
+-- recommend further action
+-- recommend interim relief
+-- approach SC/HC
+-- publish report + government response
```

Visual 32 - Evidence power versus remedy power

Stage	Commission strength	Ceiling
evidence gathering	coercive civil-court powers for listed matters	limited to inquiry
fact finding	reasoned inquiry report	reviewable by constitutional courts
victim relief	may recommend compensation/interim relief	not self-executing award
accountability	may recommend prosecution/action	prosecutor/court/department must act
constitutional enforcement	may approach SC/HC	court decides relief
publicity	publishes report and response	reputational, not coercive sanction

Visual 33 - Ordinary response timetable

```
Commission sends report + recommendations
|
one month by default
(or further time allowed)
|
government/authority comments:
action taken OR proposed
|
Commission publishes report + response
```

[FACT] Under section 20, NHRC annual and special reports go to the Central Government and concerned State Government. They must be laid before Parliament or the State Legislature, as applicable, with an action-taken/proposed memorandum and reasons for non-acceptance.

[FACT] Under section 28, SHRC reports go to the State Government and are laid before the State Legislature with corresponding action and reasons for non-acceptance.

Visual 34 - Reporting accountability chain

NHRC REPORT -> Centre/concerned State -> Parliament/State Legislature
SHRC REPORT -> State Government -> State Legislature
|
action memorandum + reasons
for non-acceptance, if any

[ANALYSIS] Publication, legislative laying and reasoned non-acceptance create political and reputational accountability even where legal compulsion is weak.

[LIMIT] Delayed laying or generic responses can reduce that accountability. A reform answer should strengthen follow-up rather than falsely describe present recommendations as binding.

CLOSING RECALL FLOW - WHAT THE COMMISSION MAY DO AFTER INQUIRY

START / CONCEPT: WHAT THE COMMISSION MAY DO AFTER INQUIRY
|
v
EXACT TERMS: NHRC • SHRC • Protection of Human Rights Act • jurisdiction • independence • recommendation
|
v
MECHANISM / ARGUMENT: Section 18 permits recommendations for compensation, prosecution, other action or interim relief, followed by government comments and publication.
|
v
CONSEQUENCE / CONTRAST: The resulting consequence is that the follow-up chain creates publicity and accountability without making the recommendation a self-executing decree.
|
v
UPSC TRAP / ANSWER-USE: The one-month period is for comments or action information, not compulsory acceptance.
|
v
ANSWER-GRABBING FORMULATION: The follow-up chain creates publicity and accountability without making the recommendation a self-executing decree.

SESSION 9 - JURISDICTIONAL BOUNDARIES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Dhoundial, the Supreme Court treated section 36(2) as a jurisdictional bar, rejected a generic “continuing wrong until reparation” theory for detention that had ended, and noted the absence of a statutory power to extend the period.

Technical definition: The complaint function is framed around violation/abetment and negligence in prevention by a public servant.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Dhoundial, the Supreme Court treated section 36(2) as a jurisdictional bar, rejected a generic “continuing wrong until reparation” theory for detention that had ended, and noted the absence of a statutory power to extend the period.

MUST-WRITE KEYWORDS

- Jurisdictional Boundaries
- one year from the date of the act
- by a public servant
- completed illegal detention
- recurring separate acts
- continuing harmful effect

How to use them: Frame the answer through Jurisdictional Boundaries; define one year from the date of the act, connect by a public servant with completed illegal detention to explain the mechanism, and use recurring separate acts for the decisive comparison or qualification.

09.1 One-year limitation and overlap

[FACT] Section 36(1) bars the NHRC from inquiring into a matter pending before an SHRC or another duly constituted commission.

[FACT] Section 36(2) bars the NHRC or an SHRC from inquiring after **one year from the date of the act** alleged to constitute the human-rights violation.

[FACT] In *N.C. Dhoundial*, the Supreme Court treated section 36(2) as a jurisdictional bar, rejected a generic “continuing wrong until reparation” theory for detention that had ended, and noted the absence of a statutory power to extend the period.

[LIMIT] A genuinely continuing act must be analysed on its facts. The case prevents turning every past violation into a continuing wrong merely because its consequences or non-reparation continue.

Visual 35 - Section 36 double gate

GATE 1: Is matter pending before SHRC/another lawful commission?
YES -> NHRC does not inquire
NO -> move to Gate 2

GATE 2: More than one year since the alleged violative act?
YES -> NHRC/SHRC statutory inquiry barred
NO -> other jurisdiction checks continue

Visual 36 - Date-of-act test

Situation	Relevant inquiry question
completed illegal detention	when did unlawful detention end?
recurring separate acts	is each later act independently alleged?
continuing harmful effect	effect alone does not automatically extend the act
Supreme Court assigns Article 32 task	<i>Paramjit Kaur</i> exception explained through <i>Dhoundial</i>

[CURRENT] No enacted amendment extending section 36(2) was located by the control date.

[ANALYSIS] Relaxing the period for grave violations, concealed violations or vulnerable complainants is a defensible reform proposal.

[LIMIT] It must be labelled a proposal; the current statutory period is one year.

09.2 SHRC subject-matter boundary

[FACT] Section 21(5) confines an SHRC to violations relating to entries in the **State List and Concurrent List**.

[FACT] If the NHRC or another duly constituted commission is already inquiring into the matter, the SHRC cannot inquire into it.

Visual 37 - SHRC jurisdiction filter

```
human-rights allegation
|
State List or Concurrent List connection?
| YES
already being inquired by NHRC/another commission?
| NO
one-year limit satisfied?
| YES
SHRC may proceed
```

09.3 Private actors and the public-servant nexus

[FACT] The complaint function is framed around violation/abetment and negligence in prevention **by a public servant**.

[ANALYSIS] A private assault, discrimination or exploitation issue may enter Commission jurisdiction where a public servant is alleged to have violated or abetted rights, or negligently failed to prevent the violation. The Commission is not a general forum for every private dispute.

Visual 38 - Private-actor nexus

```
PRIVATE ACTOR ALLEGATION
|
public servant directly involved / abetted?
OR
public servant negligently failed to prevent?
|
YES -> possible section 12(a) route
NO -> use police/court/specialised civil or statutory remedies
```

CLOSING RECALL FLOW - JURISDICTIONAL BOUNDARIES

```
START / CONCEPT: JURISDICTIONAL BOUNDARIES
|
v
EXACT TERMS: Jurisdictional Boundaries · one year from the date of the act · by a public servant ·
completed illegal detention · recurring separate acts · continuing harmful effect
|
v
MECHANISM / ARGUMENT: The complaint function is framed around violation/abetment and negligence in
prevention by a public servant.
|
v
CONSEQUENCE / CONTRAST: The Commission is not a general forum for every private dispute.
|
v
UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: a genuinely continuing act must be
analysed on its facts.
|
v
ANSWER-GRABBING FORMULATION: Dhoundial, the Supreme Court treated section 36(2) as a jurisdictional
bar, rejected a generic “continuing wrong until reparation” theory for detention that had ended,
and noted the absence of a statutory power to extend the period.
```

SESSION 10 - THE SPECIAL ARMED-FORCES PROCEDURE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Section 19 is an NHRC report-and-recommendation procedure, not an ordinary direct investigation under sections 13-18.

Technical definition: The special route reflects operational and security concerns but weakens perceived independence where the alleged violator and reporting chain are institutionally connected.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Section 19 is an NHRC report-and-recommendation procedure, not an ordinary direct investigation under sections 13-18.

MUST-WRITE KEYWORDS

- **The Special Armed-Forces Procedure**
- **three months**
- **body**
- **NHRC/SHRC as applicable**
- **NHRC**
- **finding**

How to use them: Frame the answer through The Special Armed-Forces Procedure; define three months, connect body with NHRC/SHRC as applicable to explain the mechanism, and use NHRC for the decisive comparison or qualification.

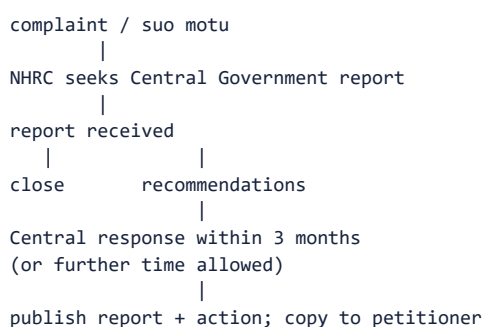
[FACT] Section 2(1)(a) defines “armed forces” as naval, military and air forces and includes any other armed forces of the Union.

[FACT] Section 19 overrides the ordinary procedure for complaints against members of the armed forces:

1. NHRC may act suo motu or on petition and seek a report from the Central Government;
2. after the report, NHRC may not proceed or may make recommendations;
3. the Central Government must inform NHRC of action taken within **three months**, or further time allowed;
4. NHRC publishes its report, recommendations and government action; and
5. the petitioner/representative receives the published report.

[LIMIT] Section 19 is an NHRC report-and-recommendation procedure, not an ordinary direct investigation under sections 13-18.

Visual 39 - Armed-forces route



Visual 40 - Ordinary case versus armed-forces case

Dimension	Ordinary section 17-18 route	Armed-forces section 19 route
body	NHRC/SHRC as applicable	NHRC
fact finding	ordinary inquiry architecture available	report sought from Centre
response default	one month under section 18(e)	three months under section 19(2)
output	recommendations/court approach/publication	recommendations/publication
concern	non-binding follow-up	reduced independent fact-finding

[ANALYSIS] The special route reflects operational and security concerns but weakens perceived independence where the alleged violator and reporting chain are institutionally connected.

[LIMIT] Police are not automatically “armed forces” under section 2(a). Do not apply section 19 to every custodial or encounter allegation involving State police.

CLOSING RECALL FLOW - THE SPECIAL ARMED-FORCES PROCEDURE

START / CONCEPT: THE SPECIAL ARMED-FORCES PROCEDURE

|

v

EXACT TERMS: The Special Armed-Forces Procedure · three months · body · NHRC/SHRC as applicable · NHRC · finding

|

v

MECHANISM / ARGUMENT: The special route reflects operational and security concerns but weakens perceived independence where the alleged violator and reporting chain are institutionally connected.

|

v

CONSEQUENCE / CONTRAST: NHRC may act suo motu or on petition and seek a report from the Central Government; after the report, NHRC may not proceed or may make recommendations; the Central Government must inform NHRC of action taken within three months, or further time allowed; NHRC publishes its report, recommendations and government action; and the petitioner/representative receives the published report.

|

v

UPSC TRAP / ANSWER-USE: Do not apply section 19 to every custodial or encounter allegation involving State police.

|

v

ANSWER-GRABBING FORMULATION: Section 19 is an NHRC report-and-recommendation procedure, not an ordinary direct investigation under sections 13-18.

SESSION 11 - HUMAN RIGHTS COURTS AND SPECIAL PUBLIC PROSECUTORS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The provision does not apply where a Court of Session is already specified as a Special Court or a Special Court already exists for those offences under another law.

Technical definition: Section 31 requires, for every Human Rights Court, notification of a Public Prosecutor or appointment of an advocate with at least seven years' practice as Special Public Prosecutor.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Section 31 requires, for every Human Rights Court, notification of a Public Prosecutor or appointment of an advocate with at least seven years' practice as Special Public Prosecutor.

MUST-WRITE KEYWORDS

- Human Rights Courts
- Special Public Prosecutors
- seven years' practice
- NHRC/SHRC
- inquire, review, recommend, publish
- recommendations generally not binding

How to use them: Frame the answer through Human Rights Courts; define Special Public Prosecutors, connect seven years' practice with NHRC/SHRC to explain the mechanism, and use inquire, review, recommend, publish for the decisive comparison or qualification.

[FACT] Section 30 says a State Government **may**, with concurrence of the Chief Justice of the High Court, notify for each district a Court of Session as a Human Rights Court for speedy trial of offences arising from human-rights violations.

[FACT] The provision does not apply where a Court of Session is already specified as a Special Court or a Special Court already exists for those offences under another law.

[FACT] Section 31 requires, for every Human Rights Court, notification of a Public Prosecutor or appointment of an advocate with at least **seven years' practice** as Special Public Prosecutor.

[LIMIT] The Act does not create a new offence called "human-rights violation," prescribe a separate complete criminal procedure for every such case or automatically activate a dedicated court in every district. Operationalisation depends

on State notification, offence-creating law, prosecution and procedural machinery.

Visual 41 - Human Rights Court chain

```

STATE GOVERNMENT proposal
+
Chief Justice of High Court concurrence
|
notification of Court of Session
|
HUMAN RIGHTS COURT for speedy trial
|
Special Public Prosecutor:
notified PP OR advocate with >=7 years' practice
  
```

Visual 42 - Commission and court are different

Institution	Main role	Binding output
NHRC/SHRC	inquire, review, recommend, publish	recommendations generally not binding
Human Rights Court	try an offence within criminal-law framework	judgment/order binding subject to appeal
Supreme Court/High Court	constitutional adjudication and writs	binding orders/judgments
police/investigation agency	investigate cognisable offences under law	report, not verdict
prosecutor	conduct prosecution	argument, not judgment

[ANALYSIS] Weak operationalisation may result from absence of dedicated notifications, unclear offence mapping, limited prosecutors, low case routing and overlap with existing special courts.

[LIMIT] Avoid unsupported nationwide counts of functioning Human Rights Courts. The structural problem can be explained without inventing numbers.

CLOSING RECALL FLOW - HUMAN RIGHTS COURTS AND SPECIAL PUBLIC PROSECUTORS

```

START / CONCEPT: HUMAN RIGHTS COURTS AND SPECIAL PUBLIC PROSECUTORS
|
v
EXACT TERMS: Human Rights Courts · Special Public Prosecutors · seven years' practice · NHRC/SHRC ·
inquire, review, recommend, publish · recommendations generally not binding
|
v
MECHANISM / ARGUMENT: Weak operationalisation may result from absence of dedicated notifications,
unclear offence mapping, limited prosecutors, low case routing and overlap with existing special
courts.
|
v
CONSEQUENCE / CONTRAST: The provision does not apply where a Court of Session is already specified
as a Special Court or a Special Court already exists for those offences under another law.
|
v
UPSC TRAP / ANSWER-USE: The Act does not create a new offence called "human-rights violation,"
prescribe a separate complete criminal procedure for every such case or automatically activate a
dedicated court in every district.
|
v
ANSWER-GRABBING FORMULATION: Section 31 requires, for every Human Rights Court, notification of a
Public Prosecutor or appointment of an advocate with at least seven years' practice as Special
Public Prosecutor.
  
```


SESSION 12 - PARIS PRINCIPLES AND GANHRI ACCREDITATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Paris Principles assess whether a national institution has a broad mandate, pluralism, independence, resources and effective methods.

Technical definition: GANHRI accreditation applies those standards, but the public listing and a challenged downgrade recommendation must be reported separately.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Accreditation is an external institutional benchmark, not a substitute for evaluating statutory powers and practice.

MUST-WRITE KEYWORDS

- Paris Principles
- GANHRI
- accreditation
- pluralism
- independence
- resources
- A status
- downgrade recommendation

How to use them: Frame the answer through Paris Principles; define GANHRI, connect accreditation with pluralism to explain the mechanism, and use independence for the decisive comparison or qualification.

[FACT] The UN General Assembly adopted the Paris Principles through Resolution 48/134 on **19 December 1993**.

[FACT] They call for:

- the broadest possible promotion-and-protection mandate in constitutional or legislative text;
- pluralist representation of social forces;
- adequate funding, staff and premises supporting independence;
- stable terms;
- freedom to consider issues, hear persons, obtain documents and publicise views;
- regular meetings and working groups;
- cooperation with courts, ombuds institutions, civil society and vulnerable groups; and
- fair complaint/conciliation/referral/reform methods where quasi-jurisdictional competence exists.

Visual 43 - Paris Principles hexagon



Visual 44 - Domestic design against Paris heads

Paris head	Supporting feature in PHRA	Tension/qualification
legal mandate	detailed parliamentary statute	mandate narrowed by one-year and armed-forces routes
stability	fixed term and protected removal	three-year terms may be relatively short
pluralism	three experts, one-woman minimum, deemed specialised members	minimum does not ensure social diversity or gender balance
investigation	civil-court powers and investigation provisions	government-provided police/officials create independence concern
resources	statutory grants and staff	government provision can affect perceived autonomy
accessibility	petitions, representative filing, suo motu action	time bar, geography, awareness and capacity affect access
publicity	publication and legislative reports	delayed or weak follow-up can blunt effect

Visual 45 - Accreditation chronology

2017 concerns
|
2023 review deferred
|
2024 further deferral
|
Mar 2025 SCA recommends B downgrade
|
3 Jun 2025 report note: India challenge + required Bureau support
|
official membership page continues to list India [A]
|
Apr-May 2026 SCA report: India not among reviewed institutions
|
19 Aug 2026 control: public A listing + unresolved scrutiny;
no invented final downgrade

[CURRENT] The March 2025 SCA report said a downgrade recommendation would not take effect for one year and that NHRC maintained A status until the 47th SCA session in 2026. The later report note records the challenge. The current GANHRI membership page lists India [A].

[CURRENT] The SCA concerns included:

- involvement of police officers in investigations;
- government-linked appointment of the Secretary-General;
- composition and pluralism;
- selection and appointment openness;
- response to serious human-rights violations and public positioning; and
- civil-society cooperation.

[LIMIT] A-status is an accreditation classification, not proof that every Paris requirement is perfectly satisfied in practice. Equally, an SCA recommendation under challenge is not the same as a completed B-status downgrade.

Visual 46 - Status language control

Unsafe sentence	Controlled sentence
"India was downgraded to B in 2025."	"The SCA recommended downgrade in March 2025; India challenged it, and GANHRI's public membership page still lists A as of 19 August 2026."
"A-status proves complete independence."	"A is the current public accreditation listing, while official SCA scrutiny identifies unresolved Paris-Principles concerns."
"No 2026 report means India was cleared."	"The 47th-session report did not list India; absence is not a published merits decision."

CLOSING RECALL FLOW - PARIS PRINCIPLES AND GANHRI ACCREDITATION

START / CONCEPT: PARIS PRINCIPLES AND GANHRI ACCREDITATION

|
v

EXACT TERMS: Paris Principles · GANHRI · accreditation · pluralism · independence · resources · A status · downgrade recommendation

|
v

MECHANISM / ARGUMENT: GANHRI accreditation applies those standards, but the public listing and a challenged downgrade recommendation must be reported separately.

|
v

CONSEQUENCE / CONTRAST: The resulting consequence is that accreditation is an external institutional benchmark, not a substitute for evaluating statutory powers and...

|
v

UPSC TRAP / ANSWER-USE: Do not treat an A listing as proof of perfect compliance or a challenged recommendation as a completed downgrade.

|
v

ANSWER-GRABBING FORMULATION: Accreditation is an external institutional benchmark, not a substitute for evaluating statutory powers and practice.

SESSION 13 - CASE LAW: EXACT HOLDINGS AND ANSWER USE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Three leading cases distinguish ordinary statutory jurisdiction from Supreme Court-supervised human-rights protection.

Technical definition: Paramjit Kaur used NHRC as an Article 32 expert body; Dhoundial enforced section 36(2); EEVFAM required lawful inquiry into excessive-force allegations.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Case law shows that court-assigned expertise can supplement but does not erase the Commission's statutory limits.

MUST-WRITE KEYWORDS

- Paramjit Kaur
- N.C. Dhoundial
- EEVFAM
- Article 32
- section 36(2)
- jurisdictional bar
- excessive force

How to use them: Frame the answer through Paramjit Kaur; define N.C. Dhoundial, connect EEVFAM with Article 32 to explain the mechanism, and use section 36(2) for the decisive comparison or qualification.

13.1 Paramjit Kaur v. State of Punjab (1999)

[FACT] In the Punjab mass-cremation context, the Supreme Court used the NHRC as an expert body assisting its Article 32 jurisdiction.

[FACT] *N.C. Dhoundial* later clarified the controlling proposition: when NHRC investigates pursuant to Supreme Court directions under Article 32, section 36(2) does not apply because NHRC acts as an expert body aiding the Court rather than merely exercising ordinary statutory jurisdiction.

[LIMIT] This is not a general power for NHRC to ignore section 36(2) whenever a case is grave. The exception depends on the Supreme Court's constitutional assignment.

Visual 47 - Paramjit Kaur exception

ORDINARY NHRC CASE	SUPREME COURT ARTICLE 32 ASSIGNMENT
acts under PHRA	acts as Court's expert body
section 36(2) applies	*Paramjit Kaur* / *Dhoundial* exception

13.2 N.C. Dhoundial v. Union of India (4 December 2003)

[FACT] The alleged illegal detention ended in April 1994; the complaint reached NHRC years later. NHRC treated non-reparation as a continuing wrong.

[FACT] The Supreme Court rejected that approach, held that the Commission is a creature of statute bound by statutory limits, and described section 36(2) as a jurisdictional embargo measured from the alleged violative act.

[FACT] The Court said the completed detention did not repeat daily after lawful remand and noted no PHRA provision extending the one-year period.

[ANALYSIS] The case is the decisive authority against answering section 36(2) as a flexible procedural limitation.

Visual 48 - Dhoundial holding chain

```
illegal detention ended
|
complaint filed years later
|
NHRC invokes continuing wrong
|
Supreme Court rejects generic theory
|
section 36(2) = jurisdictional bar
```

13.3 EEVFAM v. Union of India (8 July 2016)

[FACT] The Supreme Court held the Article 32 petition concerning alleged extra-judicial executions in Manipur maintainable.

[FACT] It reiterated that excessive or retaliatory force by police or Union armed forces is impermissible even in an AFSPA disturbed area, and allegations of excessive force causing death must be thoroughly inquired into.

[FACT] It stated that an internal armed-forces inquiry or State magisterial inquiry would not necessarily preclude another lawful inquiry/investigation. It recognised judicial inquiry, NHRC inquiry or a Commissions of Inquiry Act inquiry as possible accountability routes in the context before it.

[FACT] The Court recorded NHRC's "toothless tiger" grievance and kept open, at that stage, the question whether NHRC guidelines were binding or advisory.

[LIMIT] Do not cite *EEVFAM* as holding that section 18 recommendations generally became binding. The judgment itself kept that issue open in the passage relevant here.

Visual 49 - EEVFAM answer map

Claim	Named evidence	What it proves	Qualification
security operations remain reviewable	EEVFAM, Article 32	no rights-free zone	operational context still matters
excessive/retaliatory force impermissible	Naga People's Movement reiterated in EEVFAM	force constrained by law	not every encounter is automatically unlawful
death allegation needs thorough inquiry	EEVFAM conclusion	accountability requires facts	inquiry body/procedure depends on law and directions
NHRC has institutional relevance	Court sought NHRC assistance/inquiry information	specialist fact-finding value	not a substitute for Article 32 or criminal court

Visual 50 - Three-case synthesis

PARAMJIT KAUR -> constitutional assignment can place NHRC beyond ordinary s.36(2)
 DHOUNDIAL -> ordinary NHRC jurisdiction remains tightly statutory
 EEVFAM -> courts retain Article 32 oversight; NHRC is useful but not exclusive

CLOSING RECALL FLOW - CASE LAW: EXACT HOLDINGS AND ANSWER USE

START / CONCEPT: CASE LAW: EXACT HOLDINGS AND ANSWER USE
 |
 v
 EXACT TERMS: Paramjit Kaur · N.C. Dhoundial · EEVFAM · Article 32 · section 36(2) · jurisdictional bar · excessive force
 |
 v
 MECHANISM / ARGUMENT: The Supreme Court can assign an expert role under Article 32, while autonomous NHRC action remains governed by the PHRA.
 |
 v
 CONSEQUENCE / CONTRAST: Constitutional oversight supplies remedies where statutory inquiry routes are limited.
 |
 v
 UPSC TRAP / ANSWER-USE: Do not cite EEVFAM as making all NHRC recommendations binding or Paramjit Kaur as abolishing section 36(2).
 |
 v
 ANSWER-GRABBING FORMULATION: Case law shows that court-assigned expertise can supplement but does not erase the Commission's statutory limits.

SESSION 14 - INSTITUTIONAL COMPARISONS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Calling all national commissions “constitutional” or all of them “statutory” is wrong.

Technical definition: Technically, Institutional Comparisons is analysed by relating PHRA 1993 to PHRA 1993 + State notification constituting it, then testing the relationship through Articles 338/338A/338B and field.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Calling all national commissions “constitutional” or all of them “statutory” is wrong.

MUST-WRITE KEYWORDS

- Institutional Comparisons
- PHRA 1993
- PHRA 1993 + State notification constituting it
- Articles 338/338A/338B
- field
- national human-rights mandate

How to use them: Frame the answer through Institutional Comparisons; define PHRA 1993, connect PHRA 1993 + State notification constituting it with Articles 338/338A/338B to explain the mechanism, and use field for the decisive comparison or qualification.

Visual 51 - NHRC, SHRC and constitutional commissions

Dimension	NHRC	SHRC	NCSC/NCST/NCBC
source	PHRA 1993	PHRA 1993 + State notification constituting it	Articles 338/338A/338B
field	national human-rights mandate	State/Concurrent human-rights field	group-specific constitutional safeguards
inquiry powers	civil-court powers	same through section 29	constitutional civil-court powers
output	recommendations/reports	recommendations/reports	advice/reports/recommendations
merger difficulty	statutory change possible	statutory/federal consequences	constitutional amendment needed to abolish/absorb core
integration	seven deemed members for s.12(b)-(j)	coordination/transfer	retain specialised expertise

Visual 52 - NHRC versus courts, Lokpal and specialised bodies

Body	Basis	Jurisdiction	Typical output	Binding force
NHRC	PHRA 1993	public-servant-linked human-rights violations + promotion	inquiry report/recommendation	generally non-binding
SHRC	PHRA 1993	State/Concurrent field	inquiry report/recommendation	generally non-binding
SC/HC	Constitution	constitutional/legal disputes and writs	judgment/order	binding
Lokpal	Lokpal and Lokayuktas Act 2013	specified corruption complaints	inquiry/investigation/prosecution architecture	statutory consequences; guilt by court
NCM/NCW/NCPCR	separate statutes	group-specific safeguards/complaints	investigation/advice/reports	mainly recommendatory
Human Rights Court	PHRA notification + criminal law	trial of offences	judgment	binding subject to appeal

Visual 53 - Why one umbrella body is difficult

CONSTITUTIONAL BODIES: NCSC / NCST / NCBC
| cannot be absorbed by ordinary statutory redesign
v
SPECIALISED MANDATES + CONSTITUTIONAL FUNCTIONS

STATUTORY BODIES: NHRC / NCW / NCM / NCPCR / disability institutions
| legal merger possible in principle
v
risk of diluted expertise and accessibility

BEST EXAM MIDDLE PATH:
coordination + referral + shared data + specialised autonomy

[ANALYSIS] NHRC already provides partial umbrella coordination through deemed membership and section 36 anti-overlap rules. A mega-merger may reduce duplication but also dilute group-specific expertise and constitutional entrenchment.

[LIMIT] Calling all national commissions “constitutional” or all of them “statutory” is wrong.

Visual 54 - Binding-force ladder

PUBLICITY / ADVICE
NHRC-NCW-NCM recommendations
|
STATUTORY DIRECTION / PENALTY
depends on specific regulator or statute
|
TRIBUNAL / COURT ORDER
binding subject to appeal/review
|
CONSTITUTIONAL JUDGMENT
binding under constitutional hierarchy

CLOSING RECALL FLOW - INSTITUTIONAL COMPARISONS

START / CONCEPT: INSTITUTIONAL COMPARISONS
|
v
EXACT TERMS: Institutional Comparisons · PHRA 1993 · PHRA 1993 + State notification constituting it
· Articles 338/338A/338B · field · national human-rights mandate
|
v
MECHANISM / ARGUMENT: NHRC already provides partial umbrella coordination through deemed membership and section 36 anti-overlap rules.
|
v
CONSEQUENCE / CONTRAST: The resulting consequence is that NHRC already provides partial umbrella coordination through deemed membership and section 36 anti-overlap rules.
|
v
UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: NHRC already provides partial umbrella coordination through deemed membership and section 36 anti-overlap rules.
|
v
ANSWER-GRABBING FORMULATION: Calling all national commissions “constitutional” or all of them “statutory” is wrong.

SESSION 15 - EFFECTIVENESS: STRENGTHS, STRUCTURAL LIMITS AND PRACTICAL LIMITS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Effectiveness: Strengths, Structural Limits And Practical Limits comprises Effectiveness, Strengths and Structural Limits as its core connected dimensions.

Technical definition: Technically, Effectiveness: Strengths, Structural Limits And Practical Limits is analysed by relating Effectiveness to Strengths, then testing the relationship through Structural Limits and Practical Limits.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Effectiveness: Strengths, Structural Limits And Practical Limits comprises Effectiveness, Strengths and Structural Limits as its core connected dimensions.

MUST-WRITE KEYWORDS

- Effectiveness
- Strengths
- Structural Limits
- Practical Limits
- suo motu and representative petitions
- section 12(a)

How to use them: Frame the answer through Effectiveness; define Strengths, connect Structural Limits with Practical Limits to explain the mechanism, and use suo motu and representative petitions for the decisive comparison or qualification.

Visual 55 - Strength-limit pairs

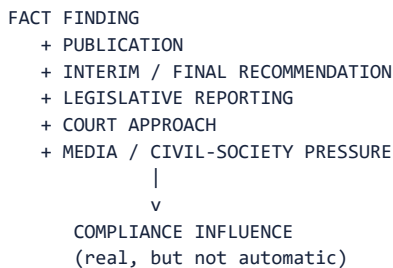
Strength	Named basis	Paired limit
suo motu and representative petitions	section 12(a)	one-year and subject-matter bars
civil-court evidence powers	section 13	recommendations are not decrees
court intervention	section 12(b)	court approval required
jail/institution visits	section 12(c)	recommendations require executive follow-up
interim relief recommendation	section 18(c)	not self-executing
public reports	sections 18, 20, 28	delayed or weak responses can blunt accountability
armed-forces visibility	section 19 publication	Centre-report route limits independent inquiry
specialised links	section 3(3)	deemed members excluded from section 12(a)

Visual 56 - Structural versus practical limitations

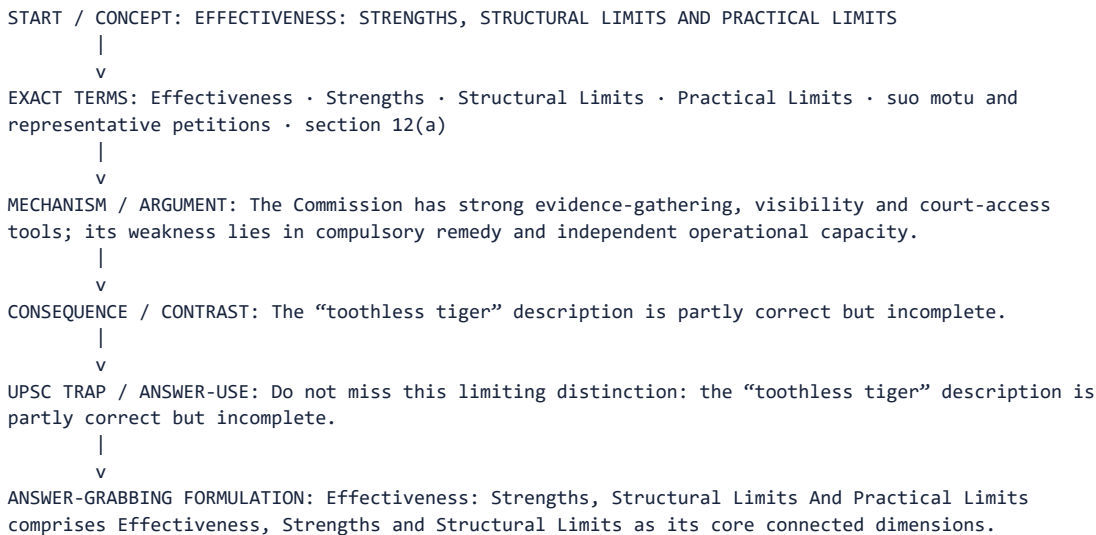
Structural: written into law	Practical: operation and capacity
recommendations framed as recommendations	vacancies or delayed appointments
one-year jurisdiction bar	uneven SHRC capacity
armed-forces report route	dependence on police/deputationists
SHRC List II/III restriction	budget/staff constraints
government role in staff provision	poor-quality or delayed government reports
narrow selection architecture	limited civil-society participation/access

[ANALYSIS] The “toothless tiger” description is partly correct but incomplete. The Commission has strong evidence-gathering, visibility and court-access tools; its weakness lies in compulsory remedy and independent operational capacity.

Visual 57 - Influence without decree



CLOSING RECALL FLOW - EFFECTIVENESS: STRENGTHS, STRUCTURAL LIMITS AND PRACTICAL LIMITS



SESSION 16 - REFORM ARCHITECTURE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Reform should match each diagnosed weakness with the legal or administrative instrument capable of fixing it.

Technical definition: Priority reforms include plural appointments, independent multidisciplinary investigation, time-bound reasoned responses, limitation reform and safeguarded armed-forces fact-finding.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Sequencing reforms by statute, rules and administration makes the proposal executable rather than rhetorical.

MUST-WRITE KEYWORDS

- NHRC
- SHRC
- Protection of Human Rights Act
- jurisdiction
- independence
- recommendation

How to use them: Frame the answer through NHRC; define SHRC, connect Protection of Human Rights Act with jurisdiction to explain the mechanism, and use independence for the decisive comparison or qualification.

[ANALYSIS] Reforms should improve enforceability and independence without casually turning the Commission into a criminal court.

Visual 58 - Problem-to-reform matrix

Problem	Reform proposal	Legal status
generic rejection/non-response	comply-or-give-detailed-reasons duty; judicial escalation on default	proposal
police investigating police allegations	independent multi-disciplinary investigation cadre	proposal requiring legal/administrative change
one-year bar	exceptions/relaxation for grave, concealed or vulnerable-victim cases	statutory amendment proposal
section 19 weakness	independent fact-finding with security safeguards	statutory amendment proposal
closed appointments	public criteria, vacancy notice, shortlists and civil-society input	proposal
weak pluralism	broader social, regional, gender and professional representation	proposal
SHRC vacancies/capacity	time-bound appointments, shared services without loss of autonomy	proposal
weak Human Rights Courts	notifications, trained prosecutors and case-routing protocols	implementation reform
fragmented commissions	referral protocol, interoperable case system and joint thematic action	coordination reform

Visual 59 - Enforceability design options

- OPTION 1: make every recommendation binding
 + stronger remedy
 - risks converting inquiry body into court without appeal safeguards
- OPTION 2: comply OR reject with detailed reasons + court escalation
 + preserves recommendatory model
 + raises cost of non-compliance
- OPTION 3: publication only
 + flexible
 - weakest against the powerful

[ANALYSIS] A reasoned-rejection model is institutionally safer than treating every recommendation as an unappealable decree. It can be paired with victim access to judicial review.

Visual 60 - Paris-aligned reform sequence

OPEN APPOINTMENT
->
PLURAL MEMBERSHIP
->
INDEPENDENT STAFF + INVESTIGATION
->
ADEQUATE, PREDICTABLE RESOURCES
->
PUBLIC POSITIONS + CIVIL-SOCIETY ACCESS
->
TIME-BOUND FOLLOW-UP

[LIMIT] All reforms in this section are proposals unless tied to an enacted provision. Current law remains the PHRA text described above.

CLOSING RECALL FLOW - REFORM ARCHITECTURE

START / CONCEPT: REFORM ARCHITECTURE
|
v
EXACT TERMS: NHRC · SHRC · Protection of Human Rights Act · jurisdiction · independence · recommendation
|
v
MECHANISM / ARGUMENT: Priority reforms include plural appointments, independent multidisciplinary investigation, time-bound reasoned responses, limitation reform and safeguarded armed-forces fact-finding.
|
v
CONSEQUENCE / CONTRAST: The resulting consequence is that sequencing reforms by statute, rules and administration makes the proposal executable rather than rhetorical.
|
v
UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: every reform remains a proposal unless tied to an enacted provision or binding judgment.
|
v
ANSWER-GRABBING FORMULATION: Sequencing reforms by statute, rules and administration makes the proposal executable rather than rhetorical.

CURRENT CONTROLS AND ANSWER-WRITING ARCHITECTURE

Visual 61 - 2026 current-control board

Date/source	Verified current point	Safe use
GANHRI March 2025 report	SCA recommended B; delayed effect; concerns specified	evidence of international scrutiny
report note, 3 June 2025	India challenged; required Bureau support obtained	recommendation not final in that report
GANHRI membership page checked for package	India displayed [A]	current public listing
GANHRI 47th report, April-May 2026	India not listed among reviewed NHRIs	do not infer clearance or downgrade
NHRC-SHRC conference, 19 May 2026	jurisdictional clarity, information sharing and coordination stressed	current coordination reform hook
current PHRA text	section 36(2) remains one year	no proposed extension written as law

Visual 62 - Claim-evidence-analysis-qualification template

Step	Example
Claim	NHRC's main weakness is compulsory follow-up, not absence of inquiry power.
Named evidence	Sections 13 and 18: civil-court inquiry powers but recommendatory relief.
Analysis	It can establish facts and publicise responsibility, yet government/court action delivers coercive remedy.
Qualification	Court approach and publication still create meaningful pressure; "powerless" is too absolute.

Visual 63 - Directive-specific answer spines

Directive	Spine
"Discuss effectiveness"	mandate -> powers -> achievements/mechanisms -> statutory/practical limits -> reforms -> graded verdict
"Analyse limitations and remedies"	direct thesis -> structural limits -> practical limits -> matched remedies -> feasibility caution
"Argue umbrella body"	map constitutional/statutory bodies -> case for -> case against -> coordinated middle path -> stand
"Compare NHRC and SHRC"	source -> composition -> appointment/removal -> jurisdiction -> function delta -> reporting
"Examine Paris compliance"	benchmark -> supporting design -> SCA concerns -> current status control -> reforms

Visual 64 - Marks-scaled evidence load

Marks	Structure	Minimum named evidence
10	thesis + 3 dimensions + one qualification + verdict	2 sections/cases/standards
15	thesis + statutory design + structural/practical analysis + reforms + verdict	4-6 named units
20	full architecture + cases + comparison + current international control + phased reform	6-8 named units

Visual 65 - Ten close-option traps

Trap	Correction
NHRC is constitutional	statutory under PHRA 1993
all deemed members hear section 12(a) complaints	deemed participation is section 12(b)-(j)
NHRC chair must be former CJI only	former CJI or former SC judge
NHRC term is five years	three years, age ceiling 70
Governor removes SHRC members	President removes
SHRC has all section 12 functions unchanged	section 12(f) omitted by section 29
recommendations are binding decrees	recommendatory; government responds
every old violation is continuing	<i>Dhondial</i> rejects generic escape
armed-forces response is one month	three months under section 19
Human Rights Court is automatically active in each district	State may notify a Sessions Court with CJ concurrence

Visual 66 - Final analytical thesis bank

1. Strong inquiry, weak compulsory remedy.
2. National mandate, but jurisdictionally fenced.
3. Statutory independence safeguards, but executive-linked staffing.
4. Specialised commissions should coordinate, not disappear into a mega-body.
5. Paris compliance is a design-and-practice test, not a badge alone.

BASIC MCQS / REMEDIATION

Original MCQs - 36 questions

Q1. Which description most accurately captures the NHRC?

- A. A statutory commission constituted under the Protection of Human Rights Act, 1993
B. A criminal court under the Code of Criminal Procedure
C. A constitutional commission under Article 338
D. An executive committee created only by Cabinet resolution

Answer: A.

Explanation: [FACT] Section 3 of the PHRA requires the Central Government to constitute the NHRC. [LIMIT] Statutory inquiry powers do not make it a court.

Q2. Section 2(d) links human rights to life, liberty, equality and dignity that are:

- A. mentioned in any international publication
B. constitutionally guaranteed or embodied in the statutory International Covenants and enforceable by courts in India
C. confined to Fundamental Rights available only to citizens
D. recognised by any NGO

Answer: B.

Explanation: [FACT] The enforceability language and defined International Covenants are essential parts of section 2(c).

Q3. "International Covenants" under section 2(f) expressly includes:

- A. all judgments of international courts
B. only the Universal Declaration of Human Rights
C. ICCPR, ICESCR and another UNGA covenant/convention only if specified by Central notification
D. every treaty signed by any ministry

Answer: C.

Explanation: [FACT] ICCPR and ICESCR are named. Other UNGA instruments need the statutory notification gate.

Q4. The seven deemed members of NHRC participate by that status in:

- A. only section 12(a) complaint inquiry
B. the presidential selection committee
C. removal proceedings
D. functions under section 12(b) to (j), not section 12(a)

Answer: D.

Explanation: [FACT] Section 3(3) expressly limits deemed membership to section 12(c)-(j).

Q5. Who is eligible to be NHRC Chairperson under current law?

- A. A person who has been CJI or a Judge of the Supreme Court
B. Only a former Union Home Secretary
C. Any serving High Court judge
D. Only a serving CJI

Answer: A.

Explanation: [FACT] The 2019 Amendment widened eligibility beyond a former CJI to a former SC judge.

Q6. Which office is NOT part of the NHRC selection committee under section 4?

A. Union Home Minister B. Chief Justice of India C. Deputy Chairman of Rajya Sabha D. Lok Sabha Speaker

Answer: B.

Explanation: [FACT] CJI consultation is required for specified sitting-judge appointments, but the CJI is not a committee member.

Q7. The ordinary NHRC member's term is:

A. five years with no age limit B. six years or age sixty-five C. three years, reappointment-eligible, with an age ceiling of seventy D. until the pleasure of the President

Answer: C.

Explanation: [FACT] Section 6 was amended in 2019. [LIMIT] The current Act does not state a fixed maximum number of reappointments.

Q8. Which ground permits direct removal by the President without the proved-misbehaviour Supreme Court inquiry track?

A. absence from one meeting B. criticism by a State government C. disagreement with a recommendation D. adjudged insolvency

Answer: D.

Explanation: [FACT] Insolvency is one of section 5(3)'s direct statutory grounds.

Q9. SHRC Chairperson and members are appointed by:

A. the Governor after the statutory committee's recommendation B. the Chief Justice of the High Court C. the State Cabinet without warrant D. the President after Parliament's recommendation

Answer: A.

Explanation: [FACT] Section 22 vests appointment in the Governor by warrant.

Q10. Who removes an SHRC Chairperson or member under the PHRA?

A. High Court Chief Justice B. President C. Chief Minister D. Governor

Answer: B.

Explanation: [FACT] Resignation goes to the Governor, but removal power belongs to the President.

Q11. Which section 12 function is omitted when applied to SHRCs by section 29?

A. jail/institution visit B. research C. treaty and international-instrument study under clause (f) D. court intervention

Answer: C.

Explanation: [FACT] Section 29 expressly omits section 12(f) for State Commissions.

Q12. An SHRC may inquire only into matters relatable to:

A. Union List only B. foreign affairs only C. residuary powers only D. State List and Concurrent List entries

Answer: D.

Explanation: [FACT] Section 21(5) supplies the federal subject-matter boundary.

Q13. Which is a civil-court power specifically granted for inquiry?

A. Summoning witnesses and examining them on oath B. Passing a criminal sentence C. Executing compensation as a decree D. Striking down legislation

Answer: A.

Explanation: [FACT] Section 13 grants evidence-gathering powers, not general judicial jurisdiction.

Q14. Under section 14, use of a government investigation agency requires:

A. a jury verdict B. concurrence of the concerned Central or State Government C. approval by every complainant D. a constitutional amendment

Answer: B.

Explanation: [FACT] The agency then acts under Commission direction and control; the Commission checks its report.

Q15. Section 16 is most directly associated with:

A. annual budgeting B. accreditation C. hearing a person whose conduct or reputation may be prejudicially affected D. armed-forces reporting

Answer: C.

Explanation: [FACT] It is the statutory natural-justice safeguard.

Q16. In an ordinary section 18 case, the default period for government comments is:

A. fifteen days B. seven days C. three months D. one month, or further time allowed

Answer: D.

Explanation: [FACT] Section 18(e) sets one month; section 19 separately uses three months for armed-forces cases.

Q17. "Armed forces" under the Act includes:

A. naval, military and air forces and other armed forces of the Union B. prison staff only C. private security agencies D. every State police constable automatically

Answer: A.

Explanation: [FACT] Section 2(a) defines the category. State police should not be casually placed under section 19.

Q18. The Central Government normally informs NHRC of action on an armed-forces recommendation within:

A. six months without extension B. three months, or further time allowed C. one year D. one month

Answer: B.

Explanation: [FACT] Section 19(2) creates the distinct timetable.

Q19. Which case treats section 36(2) as a jurisdictional bar?

A. *Indra Sawhney* B. *Kesavananda Bharati* C. *N.C. Dhoundial v. Union of India* D. *S.R. Bommai*

Answer: C.

Explanation: [FACT] The Court rejected NHRC's generic continuing-wrong theory on the facts.

Q20. A Human Rights Court is specified by:

A. NHRC alone B. the District Magistrate C. Parliament for the whole country through one resolution D. the State Government, with concurrence of the High Court Chief Justice, by notifying a Court of Session

Answer: D.

Explanation: [FACT] Section 30 uses “may” and includes an existing-special-court proviso.

Q21. A specially appointed advocate under section 31 must have practised for at least:

A. seven years B. ten years C. twelve years D. five years

Answer: A.

Explanation: [FACT] The State may instead specify a Public Prosecutor.

Q22. Which is a core Paris-Principles requirement?

A. control by the Home Ministry B. pluralist composition and adequate independent resources C. secrecy of reports D. exclusive judicial membership

Answer: B.

Explanation: [FACT] OHCHR's official text emphasises broad mandate, pluralism, infrastructure, funding and operational freedom.

Q23. The safest current statement on India's GANHRI status is:

A. India was finally downgraded in March 2025 B. India was permanently cleared in April 2026 C. the SCA recommended B in 2025, India challenged it, and the public membership page still lists A as of the control date D. India has never been reviewed

Answer: C.

Explanation: [CURRENT] This preserves the official recommendation, challenge and current public listing without inventing a final decision.

Q24. N.C. Dhoundial rejected the proposition that:

A. courts can review NHRC B. NHRC is statutory C. illegal detention can violate rights D. every completed violation remains a continuing wrong until reparation

Answer: D.

Explanation: [FACT] The Court measured the bar from the alleged act and treated the completed detention accordingly.

Q25. The Paramjit Kaur exception applies when:

A. NHRC acts as an expert body pursuant to Supreme Court Article 32 directions B. a State waives limitation C. an NGO requests it D. any complainant labels a case grave

Answer: A.

Explanation: [FACT] *Dhoundial* authoritatively explains this constitutional-assignment exception.

Q26. EEVFAM is safely used for the proposition that:

A. AFSPA eliminates judicial review B. excessive-force deaths require thorough inquiry and Article 32 oversight remains available C. every encounter is unlawful D. NHRC recommendations became universally binding

Answer: B.

Explanation: [FACT] The Court kept the binding-guideline question open in the cited passage.

Q27. A purely private dispute is most likely to enter section 12(a) jurisdiction when:

A. it is commercially important B. both parties consent to arbitration C. a public servant is alleged to have violated/abetted rights or negligently failed to prevent the violation D. social media discusses it

Answer: C.

Explanation: [FACT] The public-servant nexus separates Commission jurisdiction from a general private-dispute forum.

Q28. Which output belongs to a Human Rights Court rather than NHRC?

A. recommendation of compensation B. safeguard review C. human-rights literacy D. criminal judgment after trial within its lawful jurisdiction

Answer: D.

Explanation: [FACT] Inquiry/recommendation and criminal adjudication are institutionally distinct.

Q29. The strongest constitutional objection to merging all commissions into NHRC is:

A. NCSC, NCST and NCBC have constitutional foundations that a statutory merger cannot erase by ordinary law B. NHRC has no human-rights mandate C. every statutory body is superior to a constitutional body D. no commissions may ever cooperate

Answer: A.

Explanation: [ANALYSIS] Coordination is feasible; absorption of constitutional cores requires constitutional change.

Q30. An NHRC annual report is laid before:

A. GANHRI only B. Parliament or the concerned State Legislature as applicable, with an action memorandum and reasons for non-acceptance C. only the Supreme Court D. no public body

Answer: B.

Explanation: [FACT] Section 20 creates the legislative reporting route.

Q31. Which statement reflects current section 12(c)?

A. The Commission can visit only after a State Cabinet resolution in each case. B. It may run the institution directly. C. The Commission may visit the specified State-controlled jail/institution despite other law, study conditions and recommend changes. D. The Commission may take over the institution's administration.

Answer: C.

Explanation: [FACT] Current section 12(c) authorises the visit and recommendation function; it does not transfer administration to the Commission.

Q32. How many deemed members are listed in section 3(3)?

A. six B. three C. five D. seven

Answer: D.

Explanation: [FACT] The seven are NCBC, NCM, NCPDR, NCSC, NCST, NCW and Chief Commissioner for PwD.

Q33. Section 13 permits NHRC to transfer a complaint to an SHRC when:

A. the complaint arises from that State and the SHRC has jurisdiction B. the matter concerns only foreign affairs C. the one-year bar has expired D. the complainant always demands it

Answer: A.

Explanation: [FACT] Sections 13(6)-(7) govern transfer and subsequent treatment as an initially filed SHRC complaint.

Q34. Human-rights functions relating to the Union Territory of Delhi are dealt with by:

A. a mandatory Delhi SHRC under section 21 B. NHRC C. the Finance Commission D. NITI Aayog

Answer: B.

Explanation: [FACT] Section 21(8) assigns Delhi's functions to NHRC.

Q35. After leaving NHRC office, a Chairperson or member is:

A. required to join an SHRC B. eligible for any government job without restriction C. ineligible for further employment under Union or State government D. automatically appointed Governor

Answer: C.

Explanation: [FACT] Section 6(3) supplies this post-tenure safeguard.

Q36. Which is the most balanced assessment?

A. NHRC is useless because recommendations are advisory. B. NHRC is a court because it summons witnesses. C. A-status proves there are no independence concerns. D. NHRC combines strong fact-finding and publicity tools with weak compulsory remedy and operational-independence constraints.

Answer: D.

Explanation: [ANALYSIS] This captures both capacity and statutory/practical ceilings.

Remedial MCQs - 12 questions

R1. A student writes, "NHRC is a constitutional body because it protects Fundamental Rights." The best correction is:

A. Function does not determine source; NHRC is statutory under the PHRA, 1993. B. NHRC is a High Court division. C. Every rights body is constitutional. D. NHRC is a private association.

Answer: A.

Explanation: [FACT] Classify an institution by its creating source, not by the importance of its work.

R2. Which statement about deemed NHRC members is correct?

A. They may remove the Chairperson. B. They are deemed members for section 12(b)-(j), not the section 12(a) inquiry function. C. They are appointed by the Chief Justice of India. D. They replace the ordinary members.

Answer: B.

Explanation: [FACT] This narrow participation rule is a frequent Prelims trap.

R3. A vacancy on the NHRC selection committee:

A. always makes every appointment void B. converts appointment into a judicial nomination C. does not by itself invalidate the appointment under section 4(2) D. transfers appointment power to the Governor

Answer: C.

Explanation: [FACT] The vacancy-saving clause does not bar judicial review for other legal defects.

R4. Which sentence must be deleted from an SHRC answer?

A. The Governor receives resignation. B. The Governor appoints. C. The President removes. D. The Governor removes for proved misbehaviour after a High Court inquiry.

Answer: D.

Explanation: [FACT] Removal is by the President; proved misbehaviour/incapacity uses a Supreme Court inquiry.

R5. The post-2019 tenure rule is:

A. three years, reappointment eligible, subject to the age-seventy ceiling B. five years with no reappointment C. pleasure tenure D. life tenure

Answer: A.

Explanation: [FACT] The amendment reduced the ordinary term and altered the reappointment wording.

R6. Which is an NHRC-SHRC difference created by section 29?

A. SHRC has no civil-court powers. B. SHRC does not receive section 12(f)'s treaty/instrument-study function. C. SHRC cannot conduct research. D. SHRC cannot visit institutions.

Answer: B.

Explanation: [FACT] Sections 12, 13, 14 and 18 otherwise apply with listed modifications.

R7. "Government must accept an NHRC recommendation within one month" is wrong because:

A. recommendations expire in one month B. no response is required C. section 18 requires comments/action taken or proposed, not automatic acceptance D. only Parliament can read the report

Answer: C.

Explanation: [FACT] The one-month period concerns response. Binding compliance is not the present rule.

R8. Which pairing is correct?

A. both-one year B. ordinary response-three months; armed forces-one month C. both-seven days D. ordinary response-one month; armed-forces response-three months

Answer: D.

Explanation: [FACT] Further time may be allowed under each relevant provision.

R9. A complaint about a completed act from several years earlier is ordinarily barred by:

A. section 36(2) B. Article 280 C. section 3(3) D. section 31

Answer: A.

Explanation: [FACT] *Dhoundial* confirms the jurisdictional character of the one-year bar.

R10. Which body can return a criminal judgment after trial?

A. NHRC acting under section 18 B. a competent Human Rights Court C. NCW as deemed member D. GANHRI SCA

Answer: B.

Explanation: [FACT] The Commission recommends; the court adjudicates.

R11. The current accreditation statement should mention:

A. that accreditation is domestic law B. only the word A, without context C. A public listing together with the challenged 2025 SCA downgrade recommendation and absence of a published final downgrade located by the control date D. a final B downgrade in 2025

Answer: C.

Explanation: [CURRENT] Precise status language prevents both complacency and exaggeration.

R12. Which reform best answers both independence and due-process concerns?

A. keep all appointments secret B. abolish hearings C. allow every recommendation to be unappealable D. create independent investigation capacity and require reasoned follow-up with judicial escalation

Answer: D.

Explanation: [ANALYSIS] The design improves evidence independence and remedy accountability without pretending NHRC is a criminal court.

Visual 71 - MCQ coverage matrix

Domain	Original MCQs	Remedials	Rotation
source and definition	Q1-Q4	R1-R2	continuous A-B-C-D
composition/appointment/removal	Q5-Q12	R3-R6	continuous
powers/procedure/remedies	Q13-Q20	R7-R10	continuous
Paris/cases/comparison/current	Q21-Q36	R11-R12	continuous
total	36	12	48 markers; A-B-C-D repeated 12 times

PYQS AND ANSWER PRACTICE

PYQ, Practice and Solved Workbook

Verified PYQ routing audit

[FACT] The controlling local routing ledger directly assigns two Mains questions to this NHRC-SHRC owner:

1. **2018 GS-II Q16**-multiplicity of commissions for vulnerable sections and the umbrella Human Rights Commission proposal; 15 marks, 250 words.
2. **2021 GS-II Q12**-structural and practical limitations of Human Rights Commissions and remedies; 15 marks, 250 words.

[FACT] A comprehensive search of the 2018-2023, 2024-2025 and 2026 routing/audit ledgers found no additional direct NHRC-SHRC owner route.

[FACT] The 2023 Prelims Q35 classification question mentions NHRC, but its audited route is to the National-Commissions and Statutory/Regulatory/Quasi-Judicial owners, not directly to this topic. It is reproduced as a cross-link without inventing or labelling an unavailable official key.

Visual 67 - PYQ provenance board

Year/paper	Question	Route status	Key control
2018 GS-II Q16	multiplicity and umbrella commission	direct, cross-cutting owner route	Mains; no objective key
2021 GS-II Q12	HRC limitations and remedies	direct owner route	Mains; no objective key
2023 Prelims Q35	constitutional-body classification including NHRC	related cross-link, not direct route	local ledger says key unavailable; no official letter claimed
2024-2026	no additional direct NHRC-SHRC route found	audited	no question invented

Verified routed PYQ 1 - UPSC GS-II 2018, Q16 - 15 marks, 250 words

Verified question: “Multiplicity of various commissions for the vulnerable sections of the society leads to problems of overlapping jurisdiction and duplication of functions. Is it better to merge all commissions into an umbrella Human Rights Commission? Argue your case.”

Directive decode: “Argue your case” requires a clear stand, not a neutral list. The answer must distinguish constitutional from statutory commissions before evaluating merger.

Evidence-led model solution

Multiplicity does produce overlap, but merging every vulnerable-section commission into a statutory Human Rights Commission would be constitutionally difficult and functionally unwise. The better course is coordinated specialisation under a strengthened referral architecture.

Case for consolidation: NHRC, NCW, NCM, NCPCR and disability institutions often confront intersecting dignity, discrimination and custodial-governance issues. Section 3(3) of the Protection of Human Rights Act already recognises this overlap by making seven specialised officeholders deemed NHRC members for section 12(b)-(j). Shared intake, HRCNet-style case information and section 36 anti-duplication rules can reduce forum-shopping and inconsistent follow-up. The qualification is that deemed members do not participate in section 12(a) complaint inquiry merely by that status.

Case against a mega-merger: NCSC, NCST and NCBC are constitutional bodies under Articles 338, 338A and 338B. Their constitutional reporting, consultation and group-specific safeguards cannot be absorbed into a statutory NHRC by ordinary amendment. Even among statutory bodies, child rights, gender discrimination, minority safeguards and disability rights demand specialised law, expertise and accessible forums. A very large umbrella may centralise appointments and dilute marginal voices.

Middle path: retain specialised commissions; create a common referral protocol, interoperable case-management, joint thematic inquiries and reasoned transfer rules. Strengthen NHRC's independent investigation and follow-up while preserving each body's mandate.

Thus, the problem is not specialisation but uncoordinated specialisation. India needs an apex coordination network, not institutional erasure.

Why this earns marks: It takes a position, uses Articles 338-338B and PHRA sections 3(3)/36, addresses both sides, explains mechanism and gives a constitutionally feasible middle path.

How to improve this answer: Compress the constitutional-versus-statutory objection into one sentence, then spend more words on the workable referral and coordination mechanism.

Visual 68 - 2018 argument tree

```
OVERLAP PROBLEM
|
+-- merge all? -> simpler intake, common standards
|                 BUT constitutional bodies cannot be casually absorbed
|                 AND specialist expertise may be diluted
|
+-- retain all unchanged? -> preserves expertise
|                           BUT duplication continues
|
+-- BEST POSITION:
    specialised autonomy + common referral/data/joint-action framework
```

Verified routed PYQ 2 - UPSC GS-II 2021, Q12 - 15 marks, 250 words

Verified question: "Though the Human Rights Commissions have contributed immensely to the protection of human rights in India, yet they have failed to assert themselves against the mighty and powerful. Analyzing their structural and practical limitations, suggest remedial measures."

Directive decode: The answer must first acknowledge contribution, then separate structural limits from practical limits, and match each limit with a remedy.

Evidence-led model solution

Human Rights Commissions are valuable fact-finding and publicity institutions, but their statutory design and operational dependence weaken remedies against powerful State actors.

Contribution: Section 12 enables suo motu inquiry, court intervention with approval, institution visits and safeguard review; section 13 supplies civil-court evidence powers. In *EEVFAM* (2016), the Supreme Court treated NHRC inquiry as a meaningful accountability route while retaining Article 32 oversight. These tools expose violations and create public records, though they do not themselves complete prosecution.

Structural limits: Section 18 frames compensation and prosecution as recommendations; governments must respond, not automatically comply. Section 36(2)'s one-year bar was treated as jurisdictional in *N.C. Dhoundial*. Section 19 substitutes a Central-government report for ordinary inquiry into armed-forces complaints. SHRCs are limited to State/Concurrent subjects, and section 36 reduces parallel inquiry.

Practical limits: government-provided police investigators can face conflicts when police conduct is examined; short or incomplete membership, uneven SHRC resources, delayed official reports and limited civil-society access weaken capacity. GANHRI's March 2025 SCA report mapped similar concerns to independence, pluralism and open appointments. The recommendation remained challenged and the public listing remains A, so scrutiny must not be misstated as a completed downgrade.

Remedies: create an independent multidisciplinary investigation cadre; require compliance or detailed, time-bound rejection with court escalation; relax the one-year bar for grave/concealed violations; reform section 19 with safeguarded independent fact-finding; publish open selection criteria; ensure pluralism, resources and functioning Human Rights Courts.

The goal is not to turn NHRC into a criminal court, but to convert moral authority into accountable follow-through.

Why this earns marks: It follows the directive, balances contribution and failure, uses sections 12, 13, 18, 19 and 36, adds two cases and current GANHRI evidence, and pairs every diagnosis with a feasible remedy.

How to improve this answer: Pair each statutory limitation with exactly one implementable remedy and reserve the final two sentences for a graded verdict on independence and enforceability.

Visual 69 - 2021 diagnosis-remedy chain

Limitation	Named evidence	Remedy
recommendations not self-executing	section 18	comply-or-reasoned-reject + escalation
old complaints barred	section 36(2), <i>Dhoundial</i>	statutory exceptions for grave/concealed cases
armed-forces inquiry restricted	section 19	independent fact-finding with security safeguards
police/deputation dependence	section 11, GANHRI SCA	independent investigation cadre
pluralism/selection gaps	Paris Principles, SCA 2025	open, participatory and diverse appointments
weak district trial route	sections 30-31	notifications, prosecutors and routing protocols

Cross-linked verified Prelims PYQ - UPSC 2023, Q35

Verified question: Consider the following organisations/bodies in India: (1) National Commission for Backward Classes, (2) National Human Rights Commission, (3) National Law Commission, and (4) National Consumer Disputes Redressal Commission. How many of the above are constitutional bodies? Options: only one; only two; only three; all four.

Key-status control: The audited local ledger states that the official key is unavailable locally. No option letter is presented as an official or inferred UPSC key.

Doctrinal learning: Article 338B creates NCBC; the PHRA creates NHRC; the Law Commission is executive; and the consumer commission is statutory. The question tests source classification, not whether a body performs important public functions.

Visual 70 - Prelims source test

ASK FIRST: "Where is the body created?"

Constitution article -> constitutional

Act of legislature -> statutory

executive order -> executive

court judgment alone does not change the creating source

Original Solved Mains Practice - 8 questions

Original Mains 1 - 10 marks, 150 words

Question: Explain the statutory meaning of "human rights" under the Protection of Human Rights Act, 1993. Why is the enforceability condition important?

Directive decode: "Explain" needs the exact definition, its components and the consequence of the enforceability filter.

Model solution

Section 2(d) of the Protection of Human Rights Act defines human rights as rights relating to **life, liberty, equality and dignity** that are guaranteed by the Constitution or embodied in the "International Covenants" and enforceable by courts in India.

The first limb connects the Commission's mandate to India's constitutional rights order, especially equality and the judicially developed dignity content of Article 21. The second limb is not an open door to every international instrument. Section 2(f) expressly names the ICCPR and ICESCR and includes another UN General Assembly covenant or convention only when the Central Government specifies it by notification.

The enforceability condition is important for three reasons. First, it anchors Commission inquiry in the domestic legal system. Second, it prevents soft-law declarations or unincorporated instruments from automatically becoming enforceable merely through Commission practice. Third, it aligns the Commission's recommendations with remedies that Indian courts can legally recognise.

However, the condition should not be read as making NHRC a court. It may study broader treaties under section 12(f), promote standards and recommend reform, while coercive enforcement remains with competent authorities and courts.

Why this earns marks: It quotes the four statutory values, names sections 2(d)/2(f), distinguishes treaties from enforceable law and ends with the Commission-court boundary.

How to improve this answer: In 150 words, quote only the four statutory values and the enforceability gate; omit the longer covenant catalogue unless the question expressly asks for it.

Visual 72 - 10-marker spine: definition

exact words -> International Covenants gate -> enforceability purpose

-> wider promotional function -> NHRC is not a court

Original Mains 2 - 10 marks, 150 words

Question: Distinguish the NHRC from an SHRC with reference to composition, appointment, removal and jurisdiction.

Directive decode: Use common comparison criteria; avoid two disconnected descriptions.

Model solution

Both NHRC and SHRC are statutory commissions under the Protection of Human Rights Act, 1993, but their design reflects national and State roles.

Composition: NHRC has a former CJI/SC-judge Chairperson, two judicial members and three human-rights experts, at least one a woman, plus seven deemed members for section 12(b)-(j). SHRC has a former High Court Chief Justice/judge Chairperson, one judicial member through the High Court/District Judge route and one expert, without that deemed-member layer.

Appointment: The President appoints NHRC members on a committee led by the Prime Minister. The Governor appoints SHRC members on a committee led by the Chief Minister, with Legislative Council participation in bicameral States.

Removal: Both are removed by the President. Proved misbehaviour/incapacity requires Supreme Court inquiry. The SHRC trap is therefore: Governor appoints and receives resignation, but President removes.

Jurisdiction: NHRC has the national mandate, subject to statutory bars. SHRC is confined by section 21(5) to State and Concurrent List matters and cannot duplicate an inquiry already before NHRC/another commission. Section 29 also omits treaty study under section 12(f) for SHRCs.

Thus, powers are broadly parallel, but composition and federal reach differ.

Why this earns marks: It compares on four demanded heads, cites sections 21(5)/29 and includes the high-yield appointment-removal asymmetry.

How to improve this answer: Use a five-row NHRC-SHRC comparison grid-source, composition, appointment/removal, jurisdiction and reporting-and end with the President-removal trap.

Visual 73 - 10-marker comparison grid

Head	NHRC	SHRC
appoint	President	Governor
remove	President	President
jurisdiction	national statutory mandate	State/Concurrent field
treaty study	yes	omitted under section 29

Original Mains 3 - 10 marks, 150 words

Question: "Civil-court powers do not make the NHRC a civil court." Explain.

Directive decode: Identify the powers, the limited deeming provisions and the remedy ceiling.

Model solution

Section 13 gives NHRC important civil-court powers while inquiring into complaints: summoning witnesses, examination on oath, requiring documents, receiving affidavits, requisitioning public records and issuing commissions. Proceedings also receive specified judicial-proceeding status, and limited civil-court deeming enables action concerning offences committed in the Commission's presence.

These powers make evidence gathering credible. For example, an executive authority cannot defeat inquiry merely by refusing documents or witness attendance. Section 16's hearing safeguard also requires fairness where conduct or reputation may be prejudiced.

Yet legal character follows the whole statute, not one procedural clause. Under section 18, NHRC **recommends** compensation, prosecution or interim relief and may approach the Supreme Court/High Court. It does not execute a money decree, convict an accused or replace criminal trial. A Human Rights Court under sections 30-31, by contrast, is a notified Sessions Court capable of adjudication within criminal law.

Therefore, NHRC is a statutory inquiry-and-recommendation body with selected court-like powers, not a court with plenary adjudicative jurisdiction.

Why this earns marks: It names the section 13 toolkit, explains its purpose, contrasts section 18 and Human Rights Courts, and reaches a legally precise conclusion.

How to improve this answer: Name only three section 13 powers, contrast them immediately with section 18 outputs, and avoid implying that civil-court powers create adjudicatory jurisdiction.

Visual 74 - Power-character test

court-like evidence powers != court status
read section 13 together with section 18 outputs

Original Mains 4 - 15 marks, 250 words

Question: Examine the NHRC's institutional design against the Paris Principles. Refer to the current GANHRI accreditation scrutiny.

Directive decode: "Examine" requires supporting features, gaps, current evidence and a qualified verdict.

Model solution

The Paris Principles assess whether a national institution has a broad legal mandate, pluralist composition, independence, adequate resources, accessible methods and freedom to investigate and publicise. The NHRC's design partly satisfies each head but contains visible tensions.

Supporting design: The PHRA provides a parliamentary mandate covering complaints, jail visits, safeguard review, research, literacy and NGO encouragement. Sections 13-14 create evidence and investigation machinery; fixed terms and President/Supreme Court removal procedure protect tenure; sections 18 and 20 require publication and legislative reporting. These features give NHRC visibility and institutional continuity.

Independence and pluralism gaps: Section 11 requires government to make senior civil-service and police/investigative staff available. Where allegations concern police, secondment can create a real or perceived conflict despite Commission control under section 14. The expert-member category and one-woman minimum permit breadth but do not guarantee representation of India's social forces. The selection committee is high-level and bipartisan in formal composition, yet the Act does not require public advertisement, consultation or civil-society participation.

Mandate/access gaps: Section 36(2)'s one-year bar and section 19's armed-forces report route narrow effective protection. Non-binding recommendations make follow-up dependent on governments and courts.

Current control: GANHRI's March 2025 SCA recommended B status, citing investigation, Secretary-General, pluralism, selection, public response and civil-society concerns. India challenged the recommendation; GANHRI's public membership page still lists A as of 19 August 2026. The 2026 SCA report's silence is not a merits clearance.

Reform should open appointments, diversify membership, secure independent staff/investigation, protect funding and require reasoned, time-bound follow-up.

Why this earns marks: It applies each Paris head to named statutory provisions, uses the exact current accreditation qualification and proposes matched reforms.

How to improve this answer: Organise the answer under mandate, pluralism, investigation, resources and follow-up; attach one statutory fact and one reform to each Paris-Principles head.

Visual 75 - Paris gap-to-reform map

Paris head	Gap	Reform
pluralism	minimum representation, not full diversity	open criteria and broader representation
independence	executive-linked staff	autonomous recruitment/investigation
resources	grant dependence	predictable protected funding
accessibility	time and subject bars	calibrated exceptions and outreach
effectiveness	non-binding follow-up	reasoned compliance/escalation

Original Mains 5 - 15 marks, 250 words

Question: Is the one-year limitation under section 36(2) compatible with effective human-rights protection? Analyse with case law and propose a balanced reform.

Directive decode: State current law, explain its rationale and harm, use *Dhoundial*, then design a legally workable reform.

Model solution

Section 36(2) bars NHRC or an SHRC from inquiring more than one year after the alleged violative act. It supplies finality and protects an inquiry body from stale evidence, but its rigidity can exclude the persons most unable to complain quickly.

Current legal position: In *N.C. Dhoundial v. Union of India* (2003), a complaint concerned detention that had ended years earlier. The Supreme Court held that NHRC, as a creature of statute, cannot exceed its jurisdiction; section 36(2) is a jurisdictional embargo. The Court rejected the claim that every violation continues until reparation, because that would make the provision a dead letter. It also clarified that *Paramjit Kaur* was different: NHRC there acted as the Supreme Court's Article 32 expert body.

Case for the limit: timely complaints preserve records, witness memory and administrative certainty. NHRC is only one remedy; Articles 32/226, criminal law and other statutory forums may remain available.

Case against rigidity: custodial abuse, trafficking, disability, child abuse, remote geography or official concealment may delay knowledge and access. A uniform bar can therefore reward concealment and penalise vulnerability. Continuing or repeated acts also require fact-sensitive analysis rather than an automatic completed-act label.

Balanced reform: retain a normal one-year rule but authorise a reasoned condonation mechanism for grave violations, concealed facts, continuing acts, disability/minority, childhood or circumstances beyond the victim's control. Require recorded reasons, an outer safeguard where appropriate and judicial review. Preserve the *Paramjit Kaur* constitutional-assignment exception.

As of 19 August 2026, this remains a reform proposal; section 36(2) still says one year.

Why this earns marks: It accurately states *Dhoundial*, balances evidence/finality with access, distinguishes constitutional assignment and labels reform as prospective.

How to improve this answer: State the *Dhoundial* holding before evaluating it, distinguish delayed consequences from a continuing violation, and label any exception as a proposed amendment.

Visual 76 - Limitation balance

FINALITY + FRESH EVIDENCE <----> ACCESS + CONCEALED/GRAVE VIOLATIONS
balanced by reasoned condonation

Original Mains 6 - 15 marks, 250 words

Question: Critically analyse the special procedure for complaints against the armed forces under section 19 of the Protection of Human Rights Act.

Directive decode: Explain the exact procedure, evaluate both rationale and accountability cost, and propose safeguarded reform.

Model solution

Section 19 creates a special, narrower route for allegations against members of the armed forces, defined to include naval, military, air and other Union armed forces.

Mechanism: NHRC may act suo motu or on petition, but instead of ordinary direct inquiry it seeks a report from the Central Government. After receiving it, NHRC may close the complaint or make recommendations. The Centre reports action within three months or further time allowed; NHRC publishes the report, recommendation and action and supplies it to the petitioner.

Rationale: operations may involve classified intelligence, chain-of-command evidence and national-security risks. A central report can ensure access to operational records and preserve specialised accountability processes.

Accountability cost: the alleged institutional side controls the first factual narrative. That weakens independence and victim confidence, particularly because section 19 displaces the ordinary evidence route. Recommendations remain non-binding. *EEVFAM* (2016) demonstrates why constitutional oversight matters: the Supreme Court reiterated that excessive or retaliatory force is impermissible even in an AFSPA disturbed area and that death allegations require thorough inquiry. It did not treat security operations as a rights-free zone.

Reform: permit an independent NHRC-led or court-supervised fact-finding team with security-cleared members; use in-camera handling and redaction for genuinely sensitive material; require preservation of evidence, victim participation, reasoned public outcomes and judicial escalation for non-cooperation. Operational secrecy should be tailored, not total.

Section 19 should protect legitimate security information without making executive self-reporting the ceiling of accountability.

Why this earns marks: It reproduces the statutory steps and timetable, connects *EEVFAM* to accountability, recognises security concerns and designs proportional safeguards.

How to improve this answer: Reproduce section 19 as a four-step chain, use *EEVFAM* only for constitutional oversight, and separate security-sensitive procedure from immunity from scrutiny.

Visual 77 - Security-accountability design

Legitimate need	Safeguard
classified information	security-cleared inquiry, redaction/in-camera review
operational urgency	prompt evidence preservation
command responsibility	records and chain-of-command examination
victim confidence	independent participation and reasoned outcome

Original Mains 7 - 20 marks, 300 words

Question: Evaluate whether Human Rights Commissions in India possess sufficient independence and enforcement capacity. Suggest a phased reform programme.

Directive decode: Evaluate design and practice, distinguish independence from enforcement, and prioritise reforms.

Model solution

Human Rights Commissions possess meaningful investigative autonomy and public authority, but neither full operational independence nor sufficient compulsory enforcement.

Institutional independence: The PHRA creates fixed eligibility, terms and removal safeguards. NHRC removal for proved misbehaviour/incapacity requires a Supreme Court inquiry, and SHRC members are removed by the President rather than the State executive. These features protect tenure. Yet section 11 makes the Central Government provide a Secretary-rank officer and police/investigative staff; section 27 creates a similar State arrangement. When police are accused, dependence on police personnel creates a conflict risk. Closed selection procedures and limited statutory pluralism further affect perceived independence. GANHRI's 2025 SCA scrutiny provides named external evidence, although the recommendation remains challenged and the public listing remains A.

Enforcement capacity: Sections 13-14 provide strong fact-finding powers. Section 18 can recommend compensation, prosecution, interim relief and court action; reports are published and laid before legislatures. This is more than mere advice. However, a recommendation is not a decree, section 36(2) excludes old complaints and section 19 restricts armed-forces inquiry. Uneven SHRC staffing and government delays compound the statutory ceiling.

Phased reform:

1. **Immediate administrative phase:** fill vacancies through published calendars; digitise referral and track action-taken reports; train staff and Special Public Prosecutors; publish reasons for delay/non-acceptance.
2. **Institutional phase:** create independent multidisciplinary investigation cadres, direct recruitment and protected budgets; establish civil-society advisory channels; strengthen field access and witness/victim support.
3. **Legislative phase:** create comply-or-reasoned-reject duties with court escalation; add calibrated section 36 condonation; amend section 19 for independent fact finding; make appointments open and pluralist.
4. **Judicial/legislative oversight:** regular report laying, committee scrutiny and reviewable reasons.

The commissions should remain expert rights bodies rather than criminal courts, but their evidence must trigger a reliable remedy chain. Independence without follow-up is symbolic; enforcement without due process is unsafe.

Why this earns marks: It separates two evaluative dimensions, uses sections 11, 13, 18, 19, 27 and 36, integrates current GANHRI control, and sequences feasible reforms.

How to improve this answer: Divide the 20-marker into legal design and administrative practice, then rank reforms by what needs statutory amendment, rules, or executive action.

Visual 78 - Phased reform staircase

PHASE 1: vacancies + transparency + case tracking
|
PHASE 2: independent staff/investigation + resources
|
PHASE 3: statutory follow-up + limitation/armed-forces reform
|
PHASE 4: legislative and judicial oversight

Original Mains 8 - 20 marks, 300 words

Question: Human Rights Courts remain the missing enforcement link in India's commission-centred rights architecture. Discuss this claim and suggest how commissions, courts and specialised bodies should coordinate.

Directive decode: Explain the court provisions, why the link is incomplete, and design coordination without institutional merger.

Model solution

The PHRA separates fact-finding from adjudication. NHRC/SHRC inquire and recommend; sections 30-31 envisage Sessions Courts and Special Public Prosecutors for speedy trial. Human Rights Courts could therefore connect Commission findings to criminal accountability, but the statutory bridge is incomplete.

Legal design: A State Government may, with concurrence of the High Court Chief Justice, notify a Court of Session for each district. Existing special courts are protected from duplication. For every notified court, the State specifies a Public Prosecutor or appoints an advocate with at least seven years' practice.

Why the link is weak: The PHRA does not create a comprehensive catalogue of "human-rights offences," an automatic transfer mechanism from Commission inquiry to prosecution, or a separate procedure overriding specialised criminal laws. A notified Sessions Court may remain only a label unless police register and investigate an offence, prosecutors are trained, victims receive support and case allocation is clear. Unsupported national counts should therefore be avoided.

Coordination architecture:

- NHRC/SHRC should produce legally structured records, preserve evidence and identify the competent offence/investigating authority, while respecting section 16 hearing rights.
- Police/SITs should conduct criminal investigation independently of the Commission's recommendatory finding.
- Prosecutors should assess admissible evidence and give reasons where prosecution is declined.
- High Courts should oversee notifications, case allocation and delay through administrative and Article 226 powers.
- NCSC, NCST, NCBC, NCW, NCM, NCPCR and disability institutions should use referral protocols and joint thematic action, not lose specialist mandates in one mega-body.
- A shared case identifier can enforce section 36 anti-duplication while protecting data and victim choice.

Reform: States should notify functional courts where needed, designate trained prosecutors, publish routing rules, create victim/witness services and report outcomes without compromising privacy.

Human Rights Courts are potentially an enforcement link, but no court can repair weak investigation or vague case routing. The solution is a chain of lawful specialisation, not institutional collapse.

Why this earns marks: It explains sections 30-31, identifies the legal/operational gap, integrates criminal procedure and specialised commissions, and offers a non-merger coordination model.

How to improve this answer: Explain the missing referral bridge between Commission findings, police investigation, prosecution and the Sessions Court; do not present notification alone as operational success.

Visual 79 - Rights-enforcement chain

COMPLAINT

- > NHRC/SHRC fact finding
- > police/SIT criminal investigation
- > prosecutor decision
- > notified Sessions/Human Rights Court trial
- > appeal/judicial review

SPECIALISED COMMISSIONS feed expertise and referrals across the chain.

Visual 80 - Practice inventory

Component	Count	Control
direct verified routed Mains PYQs	2	exact local official-paper wording
related verified Prelims cross-link	1	no unavailable official key claimed
original MCQs	36	explanations; A-B-C-D rotation
remedial MCQs	12	explanations; continuous rotation
objective answer markers	48	exactly 12 A, 12 B, 12 C, 12 D
original solved Mains	8	3 x 10, 3 x 15, 2 x 20 marks
solved routed Mains	2	examiner-grade evidence-led models

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Comparative institutional design refinements

- [ANALYSIS] A stronger commission need not become a court. A calibrated model can preserve recommendatory inquiry while imposing a statutory comply-or-give-reasons duty and enabling court escalation on default.
- [ANALYSIS] Independence has separate dimensions: appointment pluralism, investigative autonomy, budget adequacy, security of tenure and publication/follow-up. A reform answer should diagnose each rather than use “toothless” as a substitute for analysis.
- [LIMIT] Paris Principles and GANHRI accreditation assess institutional compatibility; they do not themselves alter the PHRA, invalidate appointments or convert recommendations into decrees.
- [ANALYSIS] Shared intake standards and reasoned referral can reduce NHRC-SHRC-specialist overlap without erasing constitutional or group-specific mandates.

CONSOLIDATED REGISTER NOTES

Final consolidated register notes - NHRC and SHRC

Statutory identity and evolution

- [FACT] NHRC and SHRC are **statutory**, not constitutional, under the Protection of Human Rights Act, 1993.
- [FACT] Centre **shall** constitute NHRC; a State **may** constitute SHRC.
- [FACT] Act now extends to the **whole of India**; deemed commencement 28 September 1993.
- [FACT] Principal amendment controls: **2006**-procedure, court-direction route, visits, transfer and State provisions; **2019**-composition, eligibility, tenure, deemed members and UT arrangements.
- [CURRENT] No later enacted change to the taught provisions was located by 19 August 2026.

Human-rights definition

life + liberty + equality + dignity
guaranteed by Constitution OR embodied in International Covenants
AND enforceable by courts in India

- [FACT] International Covenants = ICCPR + ICESCR + another UNGA covenant/convention specified by Central notification.
- [LIMIT] Not every human-rights instrument is automatically enforceable.

NHRC composition recall

Chair: former CJI or former SC judge
Members: SC judge + HC Chief Justice + 3 HR experts
Woman rule: at least 1 among 3 experts
Deemed: NCBC, NCM, NCPDR, NCSC, NCST, NCW, Chief Commissioner PwD
Participation: section 12(b)-(j), not 12(a)

NHRC appointment and tenure

- [FACT] President appoints on recommendation of PM, LS Speaker, Home Minister, LS LoP, RS LoP and RS Deputy Chairman.
- [FACT] Committee vacancy alone does not invalidate appointment.
- [FACT] Chair: three years or age seventy, whichever earlier; reappointment eligible.
- [FACT] Member: three years; reappointment eligible; cannot serve after seventy.
- [FACT] No further Union/State government employment after office.

Removal split

Route	Control
proved misbehaviour/incapacity	President reference -> Supreme Court inquiry/report -> President
insolvency, outside paid work, infirmity, declared unsound mind, qualifying conviction	direct President order under statute

SHRC high-yield asymmetry

Governor appoints
Governor receives resignation
President removes

- [FACT] Chair: former HC Chief Justice or HC judge.
- [FACT] Member 1: serving/former HC judge or District Judge with at least seven years as District Judge.
- [FACT] Member 2: human-rights expert.
- [FACT] Appointment committee: CM, Assembly Speaker, State Home Minister, Assembly LoP; add Council Chairman and Council LoP in bicameral State.
- [FACT] Term/reappointment/age controls broadly parallel NHRC.

Functions register

Function	Exact qualification
inquiry	suo motu, petition/representative or court direction/order; public-servant nexus
court intervention	court approval
jail/institution visit	current section 12(c); study and recommend
safeguard review	Constitution/law and implementation
inhibiting factors	includes terrorism
treaty study	NHRC; section 12(f) omitted for SHRC by section 29

Function	Exact qualification
research/literacy/NGO support	promotional mandate

Inquiry-power register

- [FACT] Section 13: summon, oath, documents, affidavits, public records and commissions.
- [FACT] Purpose-specific civil-court/judicial-proceeding deeming.
- [FACT] Section 14: government agency with concurrence, under Commission control; Commission verifies report.
- [FACT] Section 16: hearing where conduct/reputation may be prejudiced.
- [LIMIT] Court-like powers do not make the Commission a court.

Section 18 output register

recommend compensation/damages
 recommend prosecution/action
 recommend interim relief
 approach SC/HC
 send and publish report
 government response: one month or further time allowed

- [LIMIT] Government must respond; recommendation is not automatically a binding decree.
- [FACT] Legislative reports carry action taken/proposed and reasons for non-acceptance.

Jurisdiction fences

Fence	Rule
overlap	NHRC does not inquire into matter pending before SHRC/another lawful commission
time	one year from alleged violative act
SHRC federal field	State List and Concurrent List
private actor	needs alleged public-servant violation/abetment/negligent prevention nexus
Delhi	human-rights functions handled by NHRC

Armed-forces control

NHRC seeks Central report
 -> close or recommend
 -> Centre responds in 3 months/further time
 -> NHRC publishes + supplies report

- [LIMIT] Special report route, not ordinary direct inquiry.
- [LIMIT] State police are not automatically "armed forces."

Human Rights Courts

- [FACT] State **may** notify a Sessions Court for each district with High Court Chief Justice concurrence.
- [FACT] Existing special-court proviso avoids duplication.
- [FACT] Special Public Prosecutor = notified PP or advocate with at least seven years' practice.
- [LIMIT] Notification alone does not create offences, evidence, prosecution or automatic case routing.

Paris Principles and accreditation control

Paris head	Recall
mandate	broad and legally defined
independence	legal and practical
pluralism	civil society/social forces represented
resources	own adequate staff, premises and funding
methods	hear, obtain information, publicise, cooperate
accessibility	complaint/referral/remedy information

- [CURRENT] March 2025 SCA recommended B; India challenged; required Bureau support recorded 3 June 2025.
- [CURRENT] GANHRI public membership page still lists India [A] at control.
- [LIMIT] 2026 SCA report's non-inclusion of India is not a published merits clearance.
- [LIMIT] Write "A public listing under unresolved scrutiny," not "completed downgrade."

Case-law capsule

Case	Holding/use	Qualification
<i>Paramjit Kaur</i> (1999)	NHRC as Supreme Court's Article 32 expert body	not general licence to ignore statute
<i>N.C. Dhoundial</i> (2003)	section 36(2) jurisdictional; generic continuing-wrong theory rejected	constitutional-assignment exception preserved
<i>EEVFAM</i> (2016)	excessive force impermissible; death allegations need thorough inquiry; Article 32 oversight	did not make all NHRC recommendations binding

Comparison capsule

NHRC/SHRC: statutory inquiry + recommendation
 NCSC/NCST/NCBC: constitutional specialised commissions
 NCW/NCM/NCPCR/disability bodies: statutory specialised institutions
 Human Rights Court: criminal adjudication
 SC/HC: constitutional writs and binding judgments
 Lokpal: corruption-specific statutory architecture

Reform register

1. open, plural and publicly reasoned appointments;
2. independent multidisciplinary investigation cadre;
3. predictable resources and direct professional recruitment;
4. comply-or-reasoned-reject duty with judicial escalation;
5. calibrated limitation exceptions for grave/concealed/vulnerable cases;
6. independent section 19 fact-finding with security safeguards;
7. SHRC vacancy and capacity calendar;
8. functional Human Rights Courts and trained prosecutors;
9. common referral/case identifier without specialist merger;
10. timely legislative laying and civil-society access.

PYQ routes and final answer spine

- **2018:** argue for coordinated specialisation, not wholesale merger.
- **2021:** contribution -> structural limits -> practical limits -> matched remedies.

THESIS

- > exact statutory architecture
- > named power and named ceiling
- > case/current evidence
- > balanced reform
- > graded verdict

Final rapid-recall traps

1. Statutory, not constitutional.
2. Chair eligibility includes former SC judge.
3. Three experts; at least one woman.
4. Seven deemed members only for section 12(b)-(j).
5. President appoints NHRC; Governor appoints SHRC.
6. President removes both.
7. Three-year terms; age seventy ceiling.
8. SHRC treaty-study clause omitted.
9. Ordinary response one month; armed forces three months.
10. Section 36(2) remains one year.
11. Civil-court powers are not a decree power.
12. Human Rights Court notification is enabling, not automatic nationwide operation.
13. 2025 SCA recommendation is challenged; public listing remains A at control date.
14. No current officeholder or volatile statistics should be memorised from this package.
15. Best verdict: **strong inquiry and publicity, weak compulsory remedy; reform independence and follow-up without confusing the Commission with a court.**

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

High-yield use: Follow the panels as one topic-specific conceptual atlas: root question, classifications, processes or arguments, comparisons, objections and a final answer-writing spine. This text-native master is separate from both graphical flowchart artifacts.

ASCII MASTER FLOW - PANEL 1/12: Statutory origin and the section 2 human-rights field

PROTECTION OF HUMAN RIGHTS ACT, 1993
deemed commencement 28 September 1993 | presidential assent 8 January 1994.
Amendments in 2006 and 2019 reshape design; commissions remain statutory.

SECTION 2(d)
rights relating to life, liberty, equality and dignity
-> guaranteed by Constitution or embodied in defined International Covenants
-> enforceable by courts in India.

SECTION 2(f)
ICCPR + ICESCR + notified UN General Assembly covenant or convention.

INSTITUTIONAL MAP
NHRC at Union level | SHRCs at State level | Human Rights Courts as trial route.

LIMIT
human-rights importance does not convert NHRC or SHRC into a constitutional court.

ASCII MASTER FLOW - PANEL 2/12: NHRC composition and deemed-member boundary

NHRC: Chairperson + five ordinary members under section 3(2).
Chair: person who has been CJI or Supreme Court Judge.
Judicial routes: Supreme Court Judge + High Court Chief Justice.
Three experts; at least one woman.

SEVEN DEEMED MEMBERS
NCBC | NCM | NCPCR | NCSC | NCST | NCW | Chief Commissioner PwD.
They participate for section 12(b)-(j), not section 12(a) complaint inquiry.

TRAP
'deemed member' is not a merger of specialised commissions.

ASCII MASTER FLOW - PANEL 3/12: NHRC appointment, tenure and removal

APPOINTMENT
Six-member committee recommends -> President appoints by warrant.
Sitting judicial appointee requires consultation with CJI.

TENURE
three years; age ceiling 70; reappointment permitted; post-office government employment barred.

REMOVAL
proved misbehaviour/incapacity: President reference -> Supreme Court inquiry/report -> removal.
Separate direct statutory grounds remain distinct.

LIMIT
committee vacancy does not by itself invalidate appointment, but judicial review remains.

ASCII MASTER FLOW - PANEL 4/12: SHRC design and the federal jurisdiction line

SHRC MAY be constituted by State Government.
Chair: person who has been High Court Chief Justice or Judge.
One judicial member + one human-rights expert.
Governor appoints after State committee recommendation; President removes under the Act.

JURISDICTION

State List + Concurrent List matters.
No duplicate inquiry where NHRC or another commission is seized.
Section 29 adapts section 12 and omits treaty-study clause 12(f).

TRAP

appointment by Governor does not mean removal by Governor.

ASCII MASTER FLOW - PANEL 5/12: Section 12 functions and section 13 evidence powers

SECTION 12 FUNCTIONS

suo motu or petition inquiry | court intervention with approval
| institution visits | review constitutional/legal safeguards
| review factors inhibiting rights | study treaties
| research | literacy | NGO encouragement | other necessary functions.

SECTION 13 INQUIRY POWERS

summon and examine on oath | documents | affidavits
| public records | commissions | specified additional powers.

SECTION 14 INVESTIGATION

Commission may use Central or State government agency or officers with consent.

PROCEDURAL FAIRNESS

notice and hearing where reputation or conduct may be prejudicially affected.

LIMIT

civil-court evidence powers support inquiry;
they do not create ordinary civil or criminal jurisdiction.

ASCII MASTER FLOW - PANEL 6/12: Investigation support and procedural fairness

SECTIONS 11 AND 14

Central Government makes specified staff available to NHRC.
Commission may use Central/State agency or officers with government consent.
Agency works under Commission direction for the assigned investigation and reports back.

SECTION 16

Give a reasonable opportunity of hearing where conduct or reputation may be prejudicially affected.

LIMIT

government-linked staff can support capacity,
but does not equal an independent permanent investigation cadre.

ASCII MASTER FLOW - PANEL 7/12: Inquiry outputs, reporting and the one-year bar

ENTRY

complaint or suo motu material -> jurisdiction screen -> inquiry or investigation.

SECTION 36

no parallel inquiry where another named commission is seized.

Section 36(2): no inquiry after one year from the alleged violative act.

SECTION 18 OUTPUTS

recommend compensation or damages

| recommend prosecution or other action

| approach Supreme Court or High Court

| recommend immediate interim relief.

FOLLOW-UP

government comments/action report ordinarily within one month

-> Commission publishes report, recommendation and response.

LEGAL EFFECT

recommendation carries public and institutional weight but is not a self-executing decree.

TRAP

action-taken reporting != mandatory acceptance and grave facts alone do not erase section 36(2).

ASCII MASTER FLOW - PANEL 8/12: Section 19 armed-forces procedure

NHRC own motion/petition -> seek Central Government report

-> either stop or recommend -> Central Government reports action within three months

-> Commission publishes report, recommendation and response.

Armed forces = naval, military, air and other armed forces of Union.

State police are not automatically within this definition.

LIMIT

section 19 replaces ordinary direct inquiry with a report-based route.

It does not create a rights-free zone.

ASCII MASTER FLOW - PANEL 9/12: Human Rights Courts and prosecution bridge

SECTIONS 30-31

State MAY, with High Court Chief Justice concurrence, specify a Court of Session for each district.

Purpose: speedy trial of offences arising from human-rights violations.

Special Public Prosecutor: Public Prosecutor or advocate with at least seven years' practice.

BOUNDARY

Commission inquires/recommends -> police investigate offences

-> prosecutor presents case -> Sessions Court adjudicates.

Notification is enabling; do not assume automatic nationwide operation.

ASCII MASTER FLOW - PANEL 10/12: Overlap, referral and specialised commissions

NHRC

national statutory mandate subject to PHRA exclusions and transfer rules.

SHRC

inquires into matters relatable to State List and Concurrent List;
section 29 adapts functions and omits treaty study.

TRANSFER

NHRC may transfer a complaint to a competent SHRC under statutory conditions.

OVERLAP

NCSC, NCST and NCBC have constitutional safeguard mandates.
Women, child, minority and disability bodies have specialised statutory fields.

COORDINATION

common intake metadata -> reasoned referral -> no duplicate inquiry
-> joint thematic work -> preserve specialist voice.

LIMIT

an umbrella merger cannot absorb constitutional commissions through ordinary PHRA amendment.

ASCII MASTER FLOW - PANEL 11/12: Paris Principles, accreditation and case-law controls

PARIS PRINCIPLES, 1993

broad legal mandate | pluralism | open appointment
| adequate resources | stable tenure | independent methods | accessibility.

DOMESTIC TEST

PHRA mandate and inquiry powers
versus police/deputation dependence, short terms, selection opacity and weak follow-up.

GANHRI CONTROL

March 2025 SCA recommended B downgrade.
India challenged with required Bureau support.
Public membership page continued to list India as A on the 24 August 2026 control.

SAFE LANGUAGE

current public A listing + unresolved official scrutiny.

TRAP

recommendation under challenge != completed downgrade;
A listing != proof of perfect Paris-Principles compliance.

Paramjit Kaur v. State of Punjab (1999)

Supreme Court used NHRC as an expert body assisting Article 32 jurisdiction.
This constitutional assignment is not ordinary PHRA jurisdiction.

N.C. Dhoundial v. Union of India (2003)

section 36(2) is a jurisdictional bar;
a completed violation does not become a daily continuing wrong merely through non-reparation.

EEVFAM (2016)

excessive-force allegations require lawful inquiry under Article 32 oversight;
NHRC is a valuable route but not exclusive and recommendations were not made generally binding.

SYNTHESIS

Court-assigned expertise may exceed the ordinary route,
but an autonomous statutory commission remains bound by statutory limits.

ASCII MASTER FLOW - PANEL 12/12: Limits, reforms, PYQs and qualified verdict

STRUCTURAL LIMITS

recommendatory outputs | one-year bar | armed-forces report route
| government-linked investigation support | federal and overlap boundaries.

PRACTICAL LIMITS

vacancies | staff/resources | delayed reports | uneven SHRC capacity
| weak Human Rights Court routing | limited civil-society trust.

REFORM

independent multidisciplinary investigation cadre
-> open plural appointments -> time-bound reasoned response
-> grave/concealed-violation limitation reform
-> safeguarded armed-forces fact-finding -> interoperable referrals.

PYQ ROUTES

2018 umbrella-commission debate | 2021 limitations and remedies
| 2023 body-classification support.

MAINS VERDICT

strengthen fact-finding, independence and follow-through without misdescribing NHRC as a court.